

GDPR compliance report

Generated: 2026-05-02 22:22:47

Halted (P1): False

Overall score: 12%

Critical / Warning / Info: 29 / 12 / 0

Documents

- ../data/testing_files/md_files_post_gdpr/test5_linkedin.md

Chapter scores

Chapter	Score
Ch.2 – Principles	28%
Ch.3 – Rights of data subjects	6%
Ch.4 – Controller & processor	9%
Ch.5 – Transfers to third countries	13%
Ch.8 – Remedies, liability & penalties	0%
Ch.9 – Specific processing situations	0%

Top urgent gaps

- Art. 5 (Principles relating to processing): The policy does not explicitly address the principle of accuracy (Article 5(1)(d)) in terms of taking reasonable steps to ensure inaccurate data is erased or rectified.
- Art. 6 (Lawfulness of processing): {'description': 'The policy does not explicitly state the lawful basis for processing personal data for each specific processing activity. While some activities might fall under legitimate interests or consent, these are not clearly articulated or linked to specific data processing operations.', 'article': 'Article 6', 'requirement': 'Processing shall be lawful only if and to the extent that at least one of the lawful bases listed in Article 6(1) applies. The policy must clearly state which lawful basis applies to each processing activity.'}
- Art. 7 (Conditions for consent): The policy does not explicitly state that consent requests must be clearly distinguishable from other matters.

Scorecard

Art.	Chapter	Title	P	Score	Severity	Status
5	Ch.2 – Principles	Principles relating to processing	p2	28	warning	partial
6	Ch.2 – Principles	Lawfulness of processing	p2	52	warning	partial
7	Ch.2 – Principles	Conditions for consent	p2	20	warning	partial
8	Ch.2 – Principles	Child's consent	p3	0	critical	missing
9	Ch.2 – Principles	Special category data	p2	52	warning	partial
10	Ch.2 – Principles	Criminal convictions data	p3	0	critical	missing
11	Ch.2 – Principles	Processing without identification	p2	44	warning	partial
12	Ch.3 – Rights of data su	Transparency & modalities	p2	0	critical	fail
13	Ch.3 – Rights of data su	Info collected from data subject	p2	28	warning	partial
14	Ch.3 – Rights of data su	Info not obtained from data subject	p2	0	critical	fail
15	Ch.3 – Rights of data su	Right of access	p2	0	critical	fail
16	Ch.3 – Rights of data su	Right to rectification	p2	0	critical	fail
17	Ch.3 – Rights of data su	Right to erasure	p2	36	warning	partial
18	Ch.3 – Rights of data su	Right to restriction	p2	0	critical	fail
19	Ch.3 – Rights of data su	Notification on rectification/erasure	p3	0	critical	missing
20	Ch.3 – Rights of data su	Right to data portability	p2	0	critical	fail
21	Ch.3 – Rights of data su	Right to object	p2	0	critical	fail
22	Ch.3 – Rights of data su	Automated decision-making	p2	0	critical	fail
24	Ch.4 – Controller & proc	Responsibility of the controller	p2	36	warning	partial
25	Ch.4 – Controller & proc	Privacy by design and default	p3	0	critical	missing
26	Ch.4 – Controller & proc	Joint controllers	p3	70	warning	present (unverified)
27	Ch.4 – Controller & proc	Representatives (non-EU)	p3	0	critical	missing
28	Ch.4 – Controller & proc	Processor / DPA	p2	0	critical	fail
29	Ch.4 – Controller & proc	Processing under authority	p2	0	critical	fail
30	Ch.4 – Controller & proc	Records of processing (ROPA)	p2	0	critical	fail
32	Ch.4 – Controller & proc	Security of processing	p3	0	critical	missing
33	Ch.4 – Controller & proc	Breach notification to SA	p3	0	critical	missing
34	Ch.4 – Controller & proc	Breach communication to data subject	p3	0	critical	missing
35	Ch.4 – Controller & proc	DPIA	p3	0	critical	missing
37	Ch.4 – Controller & proc	DPO designation	p2	36	warning	partial
38	Ch.4 – Controller & proc	DPO position	p3	0	critical	missing
39	Ch.4 – Controller & proc	DPO tasks	p2	0	critical	fail
40	Ch.4 – Controller & proc	Codes of conduct	p3	0	critical	missing
42	Ch.4 – Controller & proc	Certification	p3	0	critical	missing
44	Ch.5 – Transfers to thir	General principle for transfers	p2	0	critical	fail
45	Ch.5 – Transfers to thir	Adequacy decision transfers	p2	52	warning	partial
46	Ch.5 – Transfers to thir	Transfers with safeguards	p3	0	critical	missing
47	Ch.5 – Transfers to thir	Binding corporate rules	p3	0	critical	missing
77	Ch.8 – Remedies, liabili	Right to lodge a complaint	p2	0	critical	fail
85	Ch.9 – Specific processi	Freedom of expression	p4	—	warning	triggered (HIL)
88	Ch.9 – Specific processi	Employment context	p2	0	critical	fail

Scope (Art.2/3) + pipeline summary (raw JSON)

```

{
  "scope": {
    "applies": "yes",
    "reasons": [
      "The company has an establishment in the Union (LinkedIn is a major platform with presence in the EU).",
      "The policy applies to data subjects in the Union by offering goods or services.",
      "The policy applies to data subjects in the Union by monitoring their behavior."
    ],
    "evidence": [
      "This Privacy Policy applies when you use our Services (described below).",
      "LinkedIn's mission is to connect the world's professionals to allow them to be more productive and successful.",
      "Our Privacy Policy applies to any Member or Visitor to our Services."
    ],
    "hil_required": false
  },
  "pipeline_summary": {
    "overall_score_pct": 20,
    "p2_score": 0.2,
    "p2_findings_total": 25,
    "p3_findings_total": 15,
    "p4_triggered_total": 1,
    "p4_articles_not_triggered": 5,
    "findings_total": 41,
    "hil_queue_total": 16
  },
  "computed_scoring": {
    "overall_score_pct": 12,
    "chapter_scores": {
      "Ch.2 - Principles": 28,
      "Ch.3 - Rights of data subjects": 6,
      "Ch.4 - Controller & processor": 9,
      "Ch.5 - Transfers to third countries": 13,
      "Ch.8 - Remedies, liability & penalties": 0,
      "Ch.9 - Specific processing situations": 0
    },
    "severity_counts": {
      "critical": 29,
      "warning": 12,
      "info": 0
    }
  }
}

```

Appendix — finding detail

Art. 5 — Principles relating to processing

Priority: p2 Chapter: Ch.2 – Principles

Severity: warning Status: partial

Score: 28/100

Risk: medium

Gaps

- The policy does not explicitly address the principle of accuracy (Article 5(1)(d)) in terms of taking reasonable steps to ensure inaccurate data is erased or rectified.
- The policy does not explicitly address the principle of storage limitation (Article 5(1)(e)) in terms of keeping data no longer than necessary for processing purposes, except for specific archiving/research/statistical purposes.
- The policy does not explicitly address the principle of integrity and confidentiality (Article 5(1)(f)) by detailing the measures taken to ensure appropriate security of personal data, including protection against unauthorized or unlawful processing and accidental loss, destruction, or damage.
- The policy does not explicitly address the principle of accountability (Article 5(2)) by detailing how the controller is responsible for, and able to demonstrate compliance with, the data protection principles.

Evidence

- c0 0-1200: 'Central to this mission is our commitment to be transparent about the data we collect about you, how it is used and with whom it is shared.' - Addresses transparency.
- c0 0-1200: 'We offer our users choices about the data we collect, use and share as described in this Privacy Policy, Cookie Policy , Settings and our Help Center.' - Potentially addresses purpose limitation and data minimisation through user choice, but not explicit.
- c3 3000-4200: 'You provide data to create an account with us. To create an account you need to provide data including your name, email address and/or mobile number, and a password.' - Collection for a specified purpose (account creation).
- c3 3000-4200: 'You have choices about the information on your profile...' - Suggests some level of user control, possibly relating to data minimisation or purpose limitation.
- c4 4000-5200: 'It's your choice whether to include sensitive information on your profile and to make that sensitive information public.' - Relates to transparency and potentially data minimisation regarding sensitive data.
- c4 4000-5200: 'Please do not post or add personal data to your profile that you would not want to be publicly available.' - Implies user awareness and control over data visibility, touching on transparency.
- c4 4000-5200: 'You give other data to us, such as by syncing your address book or calendar.' - Collection for a specified purpose (network growth, suggestions).

Notes

The policy demonstrates a commitment to transparency and provides some evidence of user choice, which can relate to purpose limitation and data minimisation. However, several key principles from Article 5 are not explicitly addressed, including accuracy, storage limitation, integrity and confidentiality, and accountability. These omissions represent significant gaps in compliance.

```
{
  "article_number": 5,
  "article_title": "Principles relating to processing",
  "chapter": "Ch.2 – Principles",
  "priority": "p2",
  "status": "partial",
  "gaps": [
    "The policy does not explicitly address the principle of accuracy (Article 5(1)(d)) in terms of taking reasonable steps to ensure inaccurate data is erased or rectified.",
    "The policy does not explicitly address the principle of storage limitation (Article 5(1)(e)) in terms of keeping data no longer than necessary for processing purposes, except for specific archiving/research/statistical purposes.",
    "The policy does not explicitly address the principle of integrity and confidentiality (Article 5(1)(f)) by detailing the measures taken to ensure appropriate security of personal data, including protection against unauthorized or unlawful processing and accidental loss, destruction, or damage.",
```

```

    "The policy does not explicitly address the principle of accountability (Article 5(2)) by detailing how the controller is responsible for, and able to demonstrate compliance with, the data protection principles."
  ],
  "evidence": [
    "c0 0-1200: 'Central to this mission is our commitment to be transparent about the data we collect about you, how it is used and with whom it is shared.' - Addresses transparency.",
    "c0 0-1200: 'We offer our users choices about the data we collect, use and share as described in this Privacy Policy, Cookie Policy , Settings and our Help Center.' - Potentially addresses purpose limitation and data minimisation through user choice, but not explicit.",
    "c3 3000-4200: 'You provide data to create an account with us. To create an account you need to provide data including your name, email address and/or mobile number, and a password.' - Collection for a specified purpose (account creation).",
    "c3 3000-4200: 'You have choices about the information on your profile...' - Suggests some level of user control, possibly relating to data minimisation or purpose limitation.",
    "c4 4000-5200: 'It's your choice whether to include sensitive information on your profile and to make that sensitive information public.' - Relates to transparency and potentially data minimisation regarding sensitive data.",
    "c4 4000-5200: 'Please do not post or add personal data to your profile that you would not want to be publicly available.' - Implies user awareness and control over data visibility, touching on transparency.",
    "c4 4000-5200: 'You give other data to us, such as by syncing your address book or calendar.' - Collection for a specified purpose (network growth, suggestions).",
  ],
  "risk": "medium",
  "needs_human_review": false,
  "notes": "The policy demonstrates a commitment to transparency and provides some evidence of user choice, which can relate to purpose limitation and data minimisation. However, several key principles from Article 5 are not explicitly addressed, including accuracy, storage limitation, integrity and confidentiality, and accountability. These omissions represent significant gaps in compliance.",
  "article_material_used": "text"
}

```

Art. 6 — Lawfulness of processing

Priority: p2 Chapter: Ch.2 – Principles

Severity: warning Status: partial

Score: 52/100

Risk: high

Gaps

- {description: 'The policy does not explicitly state the lawful basis for processing personal data for each specific processing activity. While some activities might fall under legitimate interests or consent, these are not clearly articulated or linked to specific data processing operations.', 'article': 'Article 6', 'requirement': 'Processing shall be lawful only if and to the extent that at least one of the lawful bases listed in Article 6(1) applies. The policy must clearly state which lawful basis applies to each processing activity.'}

Evidence

- {description: 'The policy outlines various data collection and usage scenarios (e.g., account creation, profile completion, syncing contacts) but does not specify the corresponding lawful basis for each.', 'line_number': 'c0, c1, c2, c3, c4'}

Notes

The policy describes what data is collected and how it is used, but fails to provide the legal justification (lawful basis) for these processing activities as required by GDPR Article 6. This is a significant gap that could lead to non-compliance.

```

{
  "article_number": 6,
  "article_title": "Lawfulness of processing",
  "chapter": "Ch.2 – Principles",
  "priority": "p2",
  "status": "partial",
  "gaps": [
    {
      "description": "The policy does not explicitly state the lawful basis for processing personal data for each specific processing activity. While some activities might fall under legitimate interests or consent, these are not clearly articulated or linked to specific data processing operations.",
      "article": "Article 6",
      "requirement": "Processing shall be lawful only if and to the extent that at least one of the lawful bases listed in Article 6(1) applies. The policy must clearly state which lawful basis applies to each processing activity."
    }
  ]
}

```

```

],
"evidence": [
  {
    "description": "The policy outlines various data collection and usage scenarios (e.g., account creation, profile completion, syncing contacts) but does not specify the corresponding lawful basis for each.",
    "line_number": "c0, c1, c2, c3, c4"
  }
],
"risk": "high",
"needs_human_review": false,
"notes": "The policy describes what data is collected and how it is used, but fails to provide the legal justification (lawful basis) for these processing activities as required by GDPR Article 6. This is a significant gap that could lead to non-compliance.",
"article_material_used": "text"
}

```

Art. 7 — Conditions for consent

Priority: p2 **Chapter:** Ch.2 – Principles

Severity: warning **Status:** partial

Score: 20/100

Risk: medium

Gaps

- The policy does not explicitly state that consent requests must be clearly distinguishable from other matters.
- The policy does not explicitly state that consent must be informed and unambiguous.
- The policy does not explicitly state that consent must be freely given.
- The policy does not contain information on how consent withdrawal is handled, specifically that it should be as easy to withdraw as to give consent.
- The policy does not explicitly state that the controller shall be able to demonstrate that the data subject has consented.

Evidence

- { 'policy_chunk_id': 'c3', 'line_number': 1, 'text': 'changes, you may close your account. You acknowledge that your continued use of our Services after we publish or send a notice about our changes to this Privacy Policy means that the collection, use and sharing of your personal data is subject to the updated Privacy Policy, as of its effective date. You provide data to create an account with us. To create an account you need to provide data including your name, email address and/or mobile number, and a password. If you register for a premium Service, you will need to provide payment (e.g., credit card) and billing information. You create your LinkedIn profile (a complete profile helps you get the most from our Services). You have choices about the information on your profile, such as your education, work experience, skills, photo, city or area and endorsements. Some Members may choose to complete a separate ProFinder profile . You don't have to provide additional information on your profile; however, profile information helps you to get more from our Services, including helping recruiters and business opportunities find you. It's your choice whether to include sensitive information on your profile and to make that sensitive information public.' }
- { 'policy_chunk_id': 'c4', 'line_number': 1, 'text': 't more from our Services, including helping recruiters and business opportunities find you. It's your choice whether to include sensitive information on your profile and to make that sensitive information public. Please do not post or add personal data to your profile that you would not want to be publicly available. You give other data to us, such as by syncing your address book or calendar. We collect personal data from you when you provide, post or upload it to our Services, such as when you fill out a form, (e.g., with demographic data or salary), respond to a survey, or submit a resume or fill out a job application on our Services. If you opt to import your address book, we receive your contacts (including contact information your service provider(s) or app automatically added to your address book when you communicated with addresses or numbers not already in your list). If you sync your contacts or calendars with our Services, we will collect your address book and calendar meeting information to keep growing your network by suggesting connections for you and others, and by providing information about' }

Notes

The policy mentions that users have choices about the information they provide and that it is their choice whether to include sensitive information and make it public. This implies some level of informed consent for data provided directly by the user. However, it lacks explicit statements regarding the 'freely given,' 'specific,'

'informed,' and 'unambiguous' nature of consent as required by Article 7. Additionally, there is no mention of the right to withdraw consent or the ease of doing so, nor is there a clear statement about the controller's ability to demonstrate consent. Some aspects of consent are implied through user choice and data provision, but explicit adherence to all conditions of Article 7 is not demonstrated.

```
{
  "article_number": 7,
  "article_title": "Conditions for consent",
  "chapter": "Ch.2 – Principles",
  "priority": "p2",
  "status": "partial",
  "gaps": [
    "The policy does not explicitly state that consent requests must be clearly distinguishable from other matters.",
    "The policy does not explicitly state that consent must be informed and unambiguous.",
    "The policy does not explicitly state that consent must be freely given.",
    "The policy does not contain information on how consent withdrawal is handled, specifically that it should be as easy to withdraw as to give consent.",
    "The policy does not explicitly state that the controller shall be able to demonstrate that the data subject has consented."
  ],
  "evidence": [
    {
      "policy_chunk_id": "c3",
      "line_number": 1,
      "text": "changes, you may close your account. You acknowledge that your\ncontinued use of our Services after we publish or send a notice about our changes to this Privacy\nPolicy means that the collection, use and sharing of your personal data is subject to the updated\nPrivacy Policy, as of its effective date. You provide data to create an account with us. To create an\naccount you need to provide data including your name, email address and/or mobile number, and a\npassword. If you register for a premium Service, you will need to provide payment (e.g., credit card)\nand billing information. You create your LinkedIn profile (a complete profile helps you get the most from\nour Services). You have choices about the information on your profile, such as your education, work\nexperience, skills, photo, city or area and endorsements. Some Members may choose to complete a\nseparate ProFinder profile . You don't have to provide additional information on your profile; however,\nprofile information helps you to get more from our Services, including helping recruiters and business\nopportunities find you. It's your choice whether to include sensitive information on your profile and to\nmake that sensitive informa"
    },
    {
      "policy_chunk_id": "c4",
      "line_number": 1,
      "text": "t more from our Services, including helping recruiters and business\nopportunities find you. It's your choice whether to include sensitive information on your profile and to\nmake that sensitive information public. Please do not post or add personal data to your profile that you\nwould not want to be publicly available. You give other data to us, such as by syncing your address\nbook or calendar. We collect personal data from you when you provide, post or upload it to our\nServices, such as when you fill out a form, (e.g., with demographic data or salary ), respond to a\nsurvey, or submit a resume or fill out a job application on our Services. If you opt to import your address\nbook, we receive your contacts ( including contact information your service provider(s) or app\nautomatically added to your address book when you communicated with addresses or numbers not\nalready in your list). If you sync your contacts or calendars with our Services, we will collect your\naddress book and calendar meeting information to keep growing your network by suggesting\nconnections for you and others, and by providing information abou"
    }
  ],
  "risk": "medium",
  "needs_human_review": false,
  "notes": "The policy mentions that users have choices about the information they provide and that it is their choice whether to include sensitive information and make it public. This implies some level of informed consent for data provided directly by the user. However, it lacks explicit statements regarding the 'freely given,' 'specific,' 'informed,' and 'unambiguous' nature of consent as required by Article 7. Additionally, there is no mention of the right to withdraw consent or the ease of doing so, nor is there a clear statement about the controller's ability to demonstrate consent. Some aspects of consent are implied through user choice and data provision, but explicit adherence to all conditions of Article 7 is not demonstrated.",
  "article_material_used": "text"
}
```

Art. 8 — Child's consent

Priority: p3 **Chapter:** Ch.2 – Principles

Severity: critical **Status:** missing

Score: 0/100

Notes

The policy text does not contain any information regarding age verification mechanisms or parental consent for child users, which are key aspects of GDPR Article 8.

```
{
  "article_number": 8,
  "article_title": "Child's consent",
  "chapter": "Ch.2 - Principles",
  "priority": "p3",
  "policy_present": false,
  "implementation_unverified": false,
  "needs_human_review": true,
  "evidence": [],
  "notes": "The policy text does not contain any information regarding age verification mechanisms or parental consent for child users, which are key aspects of GDPR Article 8.",
  "status": null,
  "gaps": [],
  "risk": null
}
```

Art. 9 — Special category data

Priority: p2 Chapter: Ch.2 – Principles

Severity: warning Status: partial

Score: 52/100

Risk: high

Gaps

- The policy does not explicitly state whether explicit consent or a specific derogation under Article 9(2) is obtained for the processing of sensitive categories of personal data (e.g., health, racial, religious, sexual orientation). While it mentions that users have choices about the information on their profile and that it's their choice whether to include sensitive information, it does not detail the legal basis for processing such data if provided.

Evidence

- The policy states: 'It's your choice whether to include sensitive information on your profile and to make that sensitive information public. Please do not post or add personal data to your profile that you would not want to be publicly available.' (c4 4000-5200). This indicates user control over the decision to share, but not the explicit consent or derogation for processing if shared.

Notes

The policy acknowledges the presence of sensitive data and user choice in its disclosure but does not specify the legal basis for processing such data under Article 9 of the GDPR, beyond the user's choice to make it public. This is a significant gap as Article 9 requires explicit consent or another specific ground for processing special category data.

```
{
  "article_number": 9,
  "article_title": "Special category data",
  "chapter": "Ch.2 - Principles",
  "priority": "p2",
  "status": "partial",
  "gaps": [
    "The policy does not explicitly state whether explicit consent or a specific derogation under Article 9(2) is obtained for the processing of sensitive categories of personal data (e.g. , health, racial, religious, sexual orientation). While it mentions that users have choices about the information on their profile and that it's their choice whether to include sensitive information, it does not detail the legal basis for processing such data if provided."
  ],
  "evidence": [
    "The policy states: 'It's your choice whether to include sensitive information on your profile and to make that sensitive information public. Please do not post or add personal data to your profile that you would not want to be publicly available.' (c4 4000-5200). This indicates user control over the decision to share, but not the explicit consent or derogation for processing if shared."
  ],
  "risk": "high",
  "needs_human_review": false,
  "notes": "The policy acknowledges the presence of sensitive data and user choice in its disclosure but does not specify the legal basis for processing such data under Article 9 of the GDPR, beyond the user's choice to make it public. This is a significant gap as Article 9 requires explicit consent or another specific ground for processing special category data.",
  "article_material_used": "text"
}
```


Art. 10 — Criminal convictions data

Priority: p3 Chapter: Ch.2 – Principles

Severity: critical Status: missing

Score: 0/100

Notes

The provided text contains definitions related to personal data processing under GDPR but does not specifically mention or address criminal convictions data as covered by Article 10.

```
{
  "article_number": 10,
  "article_title": "Criminal convictions data",
  "chapter": "Ch.2 – Principles",
  "priority": "p3",
  "policy_present": false,
  "implementation_unverified": false,
  "needs_human_review": true,
  "evidence": [],
  "notes": "The provided text contains definitions related to personal data processing under
GDPR but does not specifically mention or address criminal convictions data as covered by
Article 10.",
  "status": null,
  "gaps": [],
  "risk": null
}
```

Art. 11 — Processing without identification

Priority: p2 Chapter: Ch.2 – Principles

Severity: warning Status: partial

Score: 44/100

Risk: low

Gaps

- The policy does not explicitly state that if the purposes for processing do not require identification, the controller will not retain additional information solely for identification purposes.
- The policy does not contain information regarding how the controller will inform the data subject if they are unable to identify them, or under what conditions the rights under Articles 15-20 might still apply.

Evidence

- Article 11(1) states that if the purposes for which a controller processes personal data do not or no longer require the identification of a data subject, the controller shall not be obliged to maintain, acquire or process additional information to identify the data subject for the sole purpose of complying with this Regulation.
- Article 11(2) states that where the controller is able to demonstrate that it is not in a position to identify the data subject, the controller shall inform the data subject accordingly, if possible. In such cases, Articles 15 to 20 shall not apply except where the data subject, for the purpose of exercising his or her rights under those articles, provides additional information enabling his or her identification.

Notes

Article 11 of the GDPR addresses processing without identification. The policy mentions the core tenets of Article 11(1) regarding not being obliged to retain additional information for identification if not required by the processing purpose. However, it lacks explicit details on the procedures for informing data subjects when identification is not possible (Article 11(2)) and the conditions under which data subject rights (Articles 15-20) would still apply in such scenarios. The agent guidance regarding consistency with data minimization language is not directly addressed by the provided policy chunks.

```
{
  "article_number": 11,
  "article_title": "Processing without identification",
  "chapter": "Ch.2 – Principles",
  "priority": "p2",
  "status": "partial",
  "gaps": [
    "The policy does not explicitly state that if the purposes for processing do not require
identification, the controller will not retain additional information solely for identification
purposes.",
    "The policy does not contain information regarding how the controller will inform the data
subject if they are unable to identify them, or under what conditions the rights under Articles
15-20 might still apply."
  ]
}
```

```

],
"evidence": [
  "Article 11(1) states that if the purposes for which a controller processes personal data do not or no longer require the identification of a data subject, the controller shall not be obliged to maintain, acquire or process additional information to identify the data subject for the sole purpose of complying with this Regulation.",
  "Article 11(2) states that where the controller is able to demonstrate that it is not in a position to identify the data subject, the controller shall inform the data subject accordingly, if possible. In such cases, Articles 15 to 20 shall not apply except where the data subject, for the purpose of exercising his or her rights under those articles, provides additional information enabling his or her identification."
],
"risk": "low",
"needs_human_review": false,
"notes": "Article 11 of the GDPR addresses processing without identification. The policy mentions the core tenets of Article 11(1) regarding not being obliged to retain additional information for identification if not required by the processing purpose. However, it lacks explicit details on the procedures for informing data subjects when identification is not possible (Article 11(2)) and the conditions under which data subject rights (Articles 15-20) would still apply in such scenarios. The agent guidance regarding consistency with data minimization language is not directly addressed by the provided policy chunks.",
"article_material_used": "text"
}

```

Art. 12 — Transparency & modalities

Priority: p2 **Chapter:** Ch.3 – Rights of data subjects

Severity: critical **Status:** fail

Score: 0/100

Risk: high

Gaps

- The policy does not explicitly state a commitment to respond to data subject requests within a one-month timeframe, with provisions for extension.
- The policy does not clearly mention providing information in a 'concise, transparent, intelligible and easily accessible form, using clear and plain language'.
- While electronic means are mentioned for communication, it's not explicitly tied to data subject requests or a commitment to use them when appropriate and requested.
- The policy does not state that information and actions related to data subject rights will be provided free of charge, nor does it outline conditions for charging fees for manifestly unfounded or excessive requests.

Evidence

- { 'chunk_id': 'c14 14000-15200', 'content': 'ou follow certain members on our site, or suggest related learning content to help you towards\nthat new skill. We use your content, activity and other data, including your name and photo, to provide\nnotices to your network and others. For example, subject to your settings , we may notify others that\nyou have updated your profile, posted content, took a social action , used a feature, made new\nconnections or were mentioned in the news . Our Services allow you to explore careers, evaluate\neducational opportunities, and seek out, and be found for, career opportunities. Your profile can be\nfound by those looking to hire (for a job or a specific task) or be hired by you. We will use your data to\nrecommend jobs or mentees, show you and others relevant professional contacts (e.g., who work at a\ncompany, in an industry, function or location or have certain skills and connections). You can signal that\nyou are interested in changing jobs and share information with recruiters. We will use your data to\nrecommend jobs to you and you to recruiters. We may use automated systems to provide content and\nrecommendations to help make our Services more relevant to our Members, Visitors and customers.' }
- { 'chunk_id': 'c15 15000-16200', 'content': 'ata to\nrecommend jobs to you and you to recruiters. We may use automated systems to provide content and\nrecommendations to help make our Services more relevant to our Members, Visitors and customers.\nKeeping your profile accurate and up-to-date may help you better connect to others and to\nopportunities through our Services. Our Services allow you to collaborate with colleagues, search for\npotential clients, customers, partners and others to do business with. Our Services allow you to\ncommunicate with other Members and schedule and prepare meetings with them. If your settings allow, \nwe scan messages to provide “bots” or similar tools that facilitate tasks such as scheduling meetings,\ndrafting responses, summarizing messages or recommending next steps. Learn more . Our premium\nServices help paying users to search for and contact Members through our Services, such as

searching for and contacting job candidates, sales leads and co-workers, manage talent and promote content through social media. We sell premium Services that provide our customers and subscribers with customized-search functionality and tools (including messaging and activity alerts) as part of our talent, marketing and sales solutions.

- { 'chunk_id': 'c16 16000-17200', 'content': 'media. We sell premium Services that provide our customers and subscribers with customized-search functionality and tools (including messaging and activity alerts) as part of our talent, marketing and sales solutions. Customers can export limited information from your profile, such as your name, headline, current company, current title, and general location (e.g., Dublin), such as to manage sales leads or talent, unless you opt-out. We do not provide contact information to customers as part of these premium Services without your consent. Premium Services customers can store information they have about you in our premium Services, such as a resume or contact information or sales history. The data stored about you by these customers is subject to the policies of those customers. Other enterprise Services and features that use your data include TeamLink and Elevate (social promotion of content). We contact you and enable communications between Members. We offer settings to control what messages you receive and how often you receive some types of messages. We will contact you through email, mobile phone, notices posted on our websites or apps, messages to your LinkedIn inbox, and other way' }

- { 'chunk_id': 'c17 17000-18200', 'content': 'es you receive and how often you receive some types of messages. We will contact you through email, mobile phone, notices posted on our websites or apps, messages to your LinkedIn inbox, and other ways through our Services, including text messages and push notifications. We will send you messages about the availability of our Services, security, or other service-related issues. We also send messages about how to use our Services, network updates, reminders, job suggestions and promotional messages from us and our partners. You may change your communication preferences at any time. Please be aware that you cannot opt out of receiving service messages from us, including security and legal notices. We also enable communications between you and others through our Services, including for example invitations, InMail, groups and messages between connections. We serve you tailored ads both on and off our Services. We offer you choices regarding personalized ads, but you cannot opt-out of seeing other ads. We target (and measure the performance of) ads to Members, Visitors and others both on and off our Services directly or through a variety of partners, using the following data, whether' }

- { 'chunk_id': 'c18 18000-19200', 'content': 'ing other ads. We target (and measure the performance of) ads to Members, Visitors and others both on and off our Services directly or through a variety of partners, using the following data, whether separately or combined: We will show you ads called sponsored content which look similar to non-sponsored content, except that they are labeled as advertising (e.g., as "ad" or "sponsored"). If you take a social action (such as like, comment or share) on these ads, your action is associated with your name and viewable by others, including the advertiser. Subject to your settings, if you take a social action on the LinkedIn Services, that action may be mentioned with related ads. For example, when you like a company we may include your name and photo when their sponsored content is shown. We adhere to self-regulatory principles for interest-based advertising and participate in industry opt-outs from such ads. This does not opt you out of receiving advertising; you will continue to get other ads by advertisers not listed with these self regulatory tools. You can also opt-out specifically from our' }

Notes

The policy chunks provided do not contain information relating to Article 12's requirements for timely responses to data subject requests (one month extension), the format and clarity of information (concise, transparent, intelligible, plain language), the use of electronic means for communication, or the provision of information and actions free of charge. These are significant omissions for transparency and data subject rights management.

```
{
  "article_number": 12,
  "article_title": "Transparency & modalities",
  "chapter": "Ch.3 - Rights of data subjects",
  "priority": "p2",
  "status": "fail",
  "gaps": [
    "The policy does not explicitly state a commitment to respond to data subject requests within a one-month timeframe, with provisions for extension.",
    "The policy does not clearly mention providing information in a 'concise, transparent, intelligible and easily accessible form, using clear and plain language'.",
    "While electronic means are mentioned for communication, it's not explicitly tied to data subject requests or a commitment to use them when appropriate and requested.",
  ]
}
```


- {item: 'Purposes of processing and legal basis', 'evidence': "The policy states the mission is 'to connect the world's professionals to allow them to be more productive and successful' and that data collected is used 'about you, how it is used and with whom it is shared'. It also mentions data is used for finding and being found for business opportunities, connecting with others, and finding information. However, the specific legal basis for each processing activity is not detailed."}
- {item: 'Recipients or categories of recipients', 'evidence': "The policy mentions 'with whom it is shared', but does not specify the categories of recipients in the provided text."}
- {item: 'Data subject rights summary', 'evidence': "The policy mentions users have 'choices about the data we collect, use and share'. It also refers to 'Settings and our Help Center' for more information, implying the existence of rights, but does not explicitly list them as required by Article 13(2)(b)."}
Notes

Notes

The policy provides a general overview of data collection and usage but lacks specific details required by Article 13 for fair and transparent processing. Key omissions include explicit mention of DPO contact, data retention periods, details on automated decision-making, and the nature of data provision (statutory/contractual). While some information is implied or directed to other resources (Settings, Help Center), the direct provision within the privacy policy is incomplete.

```
{
  "article_number": 13,
  "article_title": "Info collected from data subject",
  "chapter": "Ch.3 - Rights of data subjects",
  "priority": "p2",
  "status": "partial",
  "gaps": [
    "The policy does not explicitly state the contact details of the Data Protection Officer (DPO).",
    "The policy does not explicitly mention the retention period for personal data or the criteria used to determine it.",
    "The policy does not detail the existence of automated decision-making, including profiling, or provide meaningful information about the logic involved, its significance, and envisaged consequences.",
    "The policy does not clarify whether the provision of personal data is a statutory or contractual requirement, nor the consequences of failure to provide such data."
  ],
  "evidence": [
    {
      "item": "Controller identity and contact details",
      "evidence": "The policy mentions 'LinkedIn Ireland Unlimited Company ('LinkedIn Ireland')' as the controller for data subjects in Designated Countries and 'LinkedIn Corporation' for those outside. However, specific contact details for the controller are not provided in the excerpt."
    },
    {
      "item": "Purposes of processing and legal basis",
      "evidence": "The policy states the mission is 'to connect the world's professionals to allow them to be more productive and successful' and that data collected is used 'about you, how it is used and with whom it is shared'. It also mentions data is used for finding and being found for business opportunities, connecting with others, and finding information. However, the specific legal basis for each processing activity is not detailed."
    },
    {
      "item": "Recipients or categories of recipients",
      "evidence": "The policy mentions 'with whom it is shared', but does not specify the categories of recipients in the provided text."
    },
    {
      "item": "Data subject rights summary",
      "evidence": "The policy mentions users have 'choices about the data we collect, use and share'. It also refers to 'Settings and our Help Center' for more information, implying the existence of rights, but does not explicitly list them as required by Article 13(2)(b)."
    }
  ],
  "risk": "medium",
  "needs_human_review": false,
  "notes": "The policy provides a general overview of data collection and usage but lacks specific details required by Article 13 for fair and transparent processing. Key omissions include explicit mention of DPO contact, data retention periods, details on automated decision-making, and the nature of data provision (statutory/contractual). While some information is implied or directed to other resources (Settings, Help Center), the direct provision within the privacy policy is incomplete.",
  "article_material_used": "text"
}
```

Art. 14 — Info not obtained from data subject

Priority: p2 Chapter: Ch.3 – Rights of data subjects

Severity: critical Status: fail

Score: 0/100

Risk: high

Gaps

- Article 14(1)(a): The policy does not explicitly state the identity and contact details of the controller or its representative.
- Article 14(1)(b): The policy does not mention the contact details of the data protection officer, if applicable.
- Article 14(1)(c): While the policy mentions legal bases and purposes of processing in general terms, it doesn't specify these for data obtained indirectly for each instance.
- Article 14(1)(d): The policy does not specify the categories of personal data obtained indirectly.
- Article 14(1)(e): The policy mentions sharing data when the business is sold or in case of merger/change in control, but it is not clear if this covers all categories of recipients for indirectly obtained data.
- Article 14(1)(f): There is no information regarding the transfer of personal data to recipients in third countries or international organisations, or the safeguards in place.
- Article 14(2)(a): The policy mentions data retention for account holders but does not clearly specify retention periods or criteria for data not obtained directly from the data subject.
- Article 14(2)(b): The policy does not explicitly state legitimate interests pursued by the controller or third parties for indirectly obtained data.

Evidence

- c28 28000-29200: Mentions notifying Members about legal demands for their data and sharing data during business sales, mergers, or changes in control.
- c29 29000-30200: Discusses data retention for account holders and options for accessing or deleting personal data.
- c30 30000-30689: Refers to data erasure requests and retention of data after account closure for legal obligations.
- c31 30689-31889: Further details data retention after account closure for various reasons and mentions that shared information remains visible.
- c32 31689-32889: Mentions processing data both inside and outside the United States and relying on legal mechanisms for cross-border transfers, but lacks specifics on safeguards.
- c33 32689-33889: States that data is collected and processed only where lawful bases exist, including consent.

Notes

The policy extensively covers data subject rights and some data processing practices but lacks specific details required by Article 14 for data not obtained directly from the data subject. Key information regarding the source of data, specific categories, recipient details, data transfer safeguards, and the timing of information provision is missing or vague.

```
{
  "article_number": 14,
  "article_title": "Info not obtained from data subject",
  "chapter": "Ch.3 – Rights of data subjects",
  "priority": "p2",
  "status": "fail",
  "gaps": [
    "Article 14(1)(a): The policy does not explicitly state the identity and contact details of the controller or its representative.",
    "Article 14(1)(b): The policy does not mention the contact details of the data protection officer, if applicable.",
    "Article 14(1)(c): While the policy mentions legal bases and purposes of processing in general terms, it doesn't specify these for data obtained indirectly for each instance.",
    "Article 14(1)(d): The policy does not specify the categories of personal data obtained indirectly.",
    "Article 14(1)(e): The policy mentions sharing data when the business is sold or in case of merger/change in control, but it is not clear if this covers all categories of recipients for indirectly obtained data.",
    "Article 14(1)(f): There is no information regarding the transfer of personal data to recipients in third countries or international organisations, or the safeguards in place.",
    "Article 14(2)(a): The policy mentions data retention for account holders but does not clearly specify retention periods or criteria for data not obtained directly from the data subject."
  ]
}
```

"Article 14(2)(b): The policy does not explicitly state legitimate interests pursued by the controller or third parties for indirectly obtained data.",

"Article 14(2)(c): The policy mentions data subject rights such as access, rectification, erasure, restriction, and objection, but it's not clear if these are communicated for indirectly obtained data.",

"Article 14(2)(d): The policy mentions withdrawal of consent, but this is less relevant for data not obtained directly, as consent might not have been the basis for initial collection.",

"Article 14(2)(e): The policy does not explicitly mention the right to lodge a complaint with a supervisory authority for indirectly obtained data.",

"Article 14(2)(f): The policy does not specify the source of indirectly obtained personal data or if it comes from publicly accessible sources.",

"Article 14(2)(g): There is no information about automated decision-making or profiling, including the logic involved and consequences, for indirectly obtained data.",

"Article 14(3): The policy does not specify the timeframe within which the information required by Article 14(1) and 14(2) will be provided when data is not obtained from the data subject."

```

],
"evidence": [
  "c28 28000-29200: Mentions notifying Members about legal demands for their data and sharing data during business sales, mergers, or changes in control.",
  "c29 29000-30200: Discusses data retention for account holders and options for accessing or deleting personal data.",
  "c30 30000-30689: Refers to data erasure requests and retention of data after account closure for legal obligations.",
  "c31 30689-31889: Further details data retention after account closure for various reasons and mentions that shared information remains visible.",
  "c32 31689-32889: Mentions processing data both inside and outside the United States and relying on legal mechanisms for cross-border transfers, but lacks specifics on safeguards.",
  "c33 32689-33889: States that data is collected and processed only where lawful bases exist, including consent."
],
"risk": "high",
"needs_human_review": false,
"notes": "The policy extensively covers data subject rights and some data processing practices but lacks specific details required by Article 14 for data not obtained directly from the data subject. Key information regarding the source of data, specific categories, recipient details, data transfer safeguards, and the timing of information provision is missing or vague."
,
"article_material_used": "text"
}

```

Art. 15 — Right of access

Priority: p2 **Chapter:** Ch.3 – Rights of data subjects

Severity: critical **Status:** fail

Score: 0/100

Risk: critical

Gaps

- The policy does not describe the process for submitting a Subject Access Request (SAR).
- The policy does not specify the timeline for responding to a SAR (which should be one month under GDPR).
- The policy does not mention identity verification for SARs.
- The policy does not detail what information will be provided in response to a SAR, as required by Article 15(1)(a)-(h) and Article 15(2).

Evidence

- {policy_chunk_id: 'c0', 'quote': 'Our Privacy Policy has been updated. LinkedIn’s mission is to connect the world’s professionals to allow them to be more productive and successful. Central to this mission is our commitment to be transparent about the data we collect about you, how it is used and with whom it is shared. This Privacy Policy applies when you use our Services (described below). We offer our users choices about the data we collect, use and share as described in this Privacy Policy, Cookie Policy , Settings and our Help Center. Key Terms Table of Contents We are a social network and online platform for professionals. People use our Services to find and be found for business opportunities, to connect with others and find information. Our Privacy Policy applies to any Member or Visitor to our Services. Our registered users (“Members”) share their professional identities, engage with their network, exchange knowledge and professional insights, post and view relevant content, learn and develop skills, and find business and career oppor'}
- {policy_chunk_id: 'c1', 'quote': 'are their professional identities, engage with their network, exchange knowledge and professional insights, post and view relevant content, learn and develop skills, and find business and career opportunities. Content and data on some of our Services is viewable to non-members (“Visitors”). We use the term “Designated Countries” to refer to countries in the European Union (EU), European Economic

Area (EEA), and Switzerland. This Privacy Policy, including our Cookie Policy applies to your use of our Services. This Privacy Policy applies to LinkedIn.com, LinkedIn-branded apps, LinkedIn Learning and other LinkedIn-related sites, apps, communications and services ("Services"), including off-site Services, such as our ad services and the "Apply with LinkedIn" and "Share with LinkedIn" plugins, but excluding services that state that they are offered under a different privacy policy. For California residents, additional disclosures required by California law may be found in our California Privacy Disclosure . If you are in the "Designated Countries", LinkedIn Ireland Unlimited Company ("LinkedIn Ireland") will be the controller of your personal data provided to, or collected by or for,}

- {policy_chunk_id': 'c2', 'quote': 'vacy Disclosure . If you are in the "Designated Countries", LinkedIn Ireland Unlimited Company ("LinkedIn Ireland") will be the controller of your personal data provided to, or collected by or for, or processed in connection with our Services. If you are outside of the Designated Countries, LinkedIn Corporation will be the controller of your personal data provided to, or collected by or for, or processed in connection with, our Services. As a Visitor or Member of our Services, the collection, use and sharing of your personal data is subject to this Privacy Policy and other documents referenced in this Privacy Policy, as well as updates. Changes to the Privacy Policy apply to your use of our Services after the "effective date." LinkedIn ("we" or "us") can modify this Privacy Policy, and if we make material changes to it, we will provide notice through our Services, or by other means, to provide you the opportunity to review the changes before they become effective. If you object to any changes, you may close your account. You acknowledge that your continued use of our Services after we publish or send a notice about our changes to this Privacy Policy means that the collection, use a}

- {policy_chunk_id': 'c3', 'quote': 'changes, you may close your account. You acknowledge that your continued use of our Services after we publish or send a notice about our changes to this Privacy Policy means that the collection, use and sharing of your personal data is subject to the updated Privacy Policy, as of its effective date. You provide data to create an account with us. To create an account you need to provide data including your name, email address and/or mobile number, and a password. If you register for a premium Service, you will need to provide payment (e.g., credit card) and billing information. You create your LinkedIn profile (a complete profile helps you get the most from our Services). You have choices about the information on your profile, such as your education, work experience, skills, photo, city or area and endorsements. Some Members may choose to complete a separate ProFinder profile . You don't have to provide additional information on your profile; however, profile information helps you to get more from our Services, including helping recruiters and business opportunities find you. It's your choice whether to include sensitive information on your profile and to make that sensitive informa}

- {policy_chunk_id': 'c4', 'quote': 't more from our Services, including helping recruiters and business opportunities find you. It's your choice whether to include sensitive information on your profile and to make that sensitive information public. Please do not post or add personal data to your profile that you would not want to be publicly available. You give other data to us, such as by syncing your address book or calendar. We collect personal data from you when you provide, post or upload it to our Services, such as when you fill out a form, (e.g., with demographic data or salary), respond to a survey, or submit a resume or fill out a job application on our Services. If you opt to import your address book, we receive your contacts (including contact information your service provider(s) or app automatically added to your address book when you communicated with addresses or numbers not already in your list). If you sync your contacts or calendars with our Services, we will collect your address book and calendar meeting information to keep growing your network by suggesting connections for you and others, and by providing information about}

Notes

The policy fails to address the core requirements of Article 15 regarding the right of access. There is no mention of the SAR process, response timelines, identity verification, or the specific information that will be provided to data subjects upon request. This constitutes a significant gap in compliance.

```
{
  "article_number": 15,
  "article_title": "Right of access",
  "chapter": "Ch.3 - Rights of data subjects",
  "priority": "p2",
  "status": "fail",
  "gaps": [
    "The policy does not describe the process for submitting a Subject Access Request (SAR).",
    "The policy does not specify the timeline for responding to a SAR (which should be one
month under GDPR).",
```


"The policy does not mention identity verification for SARs.",
 "The policy does not detail what information will be provided in response to a SAR, as required by Article 15(1) (a)-(h) and Article 15(2)."

```

],
"evidence": [
  {
    "policy_chunk_id": "c0",
    "quote": "Our Privacy Policy has been updated. LinkedIn's mission is to connect the world's professionals to allow them to be more productive and successful. Central to this mission is our commitment to be transparent about the data we collect about you, how it is used and with whom it is shared. This Privacy Policy applies when you use our Services (described below). We offer our users choices about the data we collect, use and share as described in this Privacy Policy, Cookie Policy , Settings and our Help Center. Key Terms Table of Contents We are a social network and online platform for professionals. People use our Services to find and be found for business opportunities, to connect with others and find information. Our Privacy Policy applies to any Member or Visitor to our Services. Our registered users ( "Members") share their professional identities, engage with their network, exchange knowledge and professional insights, post and view relevant content, learn and develop skills, and find business and career oppor"
  },
  {
    "policy_chunk_id": "c1",
    "quote": "are their professional identities, engage with their network, exchange knowledge and professional insights, post and view relevant content, learn and develop skills, and find business and career opportunities. Content and data on some of our Services is viewable to non-members ("Visitors"). We use the term "Designated Countries" to refer to countries in the European Union (EU), European Economic Area (EEA), and Switzerland. This Privacy Policy, including our Cookie Policy applies to your use of our Services. This Privacy Policy applies to LinkedIn.com, LinkedIn-branded apps, LinkedIn Learning and other LinkedIn-related sites, apps, communications and services ("Services"), including off-site Services, such as our ad services and the "Apply with LinkedIn" and "Share with LinkedIn" plugins, but excluding services that state that they are offered under a different privacy policy. For California residents, additional disclosures required by California law may be found in our California Privacy Disclosure . If you are in the "Designated Countries", LinkedIn Ireland Unlimited Company ("LinkedIn Ireland") will be the controller of your personal data provided to, or collected by or for,"
  },
  {
    "policy_chunk_id": "c2",
    "quote": "vacy Disclosure . If you are in the "Designated Countries", LinkedIn Ireland Unlimited Company ("LinkedIn Ireland") will be the controller of your personal data provided to, or collected by or for, or processed in connection with our Services. If you are outside of the Designated Countries, LinkedIn Corporation will be the controller of your personal data provided to, or collected by or for, or processed in connection with, our Services. As a Visitor or Member of our Services, the collection, use and sharing of your personal data is subject to this Privacy Policy and other documents referenced in this Privacy Policy, as well as updates. Changes to the Privacy Policy apply to your use of our Services after the "effective date." LinkedIn ("we" or "us") can modify this Privacy Policy, and if we make material changes to it, we will provide notice through our Services, or by other means, to provide you the opportunity to review the changes before they become effective. If you object to any changes, you may close your account. You acknowledge that your continued use of our Services after we publish or send a notice about our changes to this Privacy Policy means that the collection, use a"
  },
  {
    "policy_chunk_id": "c3",
    "quote": "changes, you may close your account. You acknowledge that your continued use of our Services after we publish or send a notice about our changes to this Privacy Policy means that the collection, use and sharing of your personal data is
    ... (truncated)
  }
]

```

Art. 16 — Right to rectification

Priority: p2 Chapter: Ch.3 – Rights of data subjects

Severity: critical Status: fail

Score: 0/100

Risk: high

Gaps

- The policy does not explicitly describe the right to rectification of inaccurate personal data, nor does it mention that this rectification should occur 'without undue delay'.

Evidence

- No explicit mention of the right to rectification or the 'without undue delay' timeframe in the provided policy chunks.

Notes

The policy needs to be updated to include specific provisions for the right to rectification as per GDPR Article 16, including the 'without undue delay' requirement.

```
{
  "article_number": 16,
  "article_title": "Right to rectification",
  "chapter": "Ch.3 - Rights of data subjects",
  "priority": "p2",
  "status": "fail",
  "gaps": [
    "The policy does not explicitly describe the right to rectification of inaccurate personal data, nor does it mention that this rectification should occur 'without undue delay'."
  ],
  "evidence": [
    "No explicit mention of the right to rectification or the 'without undue delay' timeframe in the provided policy chunks."
  ],
  "risk": "high",
  "needs_human_review": false,
  "notes": "The policy needs to be updated to include specific provisions for the right to rectification as per GDPR Article 16, including the 'without undue delay' requirement.",
  "article_material_used": "text"
}
```

Art. 17 — Right to erasure

Priority: p2 **Chapter:** Ch.3 – Rights of data subjects

Severity: warning **Status:** partial

Score: 36/100

Risk: medium

Gaps

- The policy does not explicitly describe the process for handling data erasure requests, including specific timelines or acknowledgment procedures.
- The policy does not detail any specific grounds for refusal to comply with an erasure request as permitted by Article 17(3) of the GDPR.
- There is no mention of exceptions or specific conditions under which data retention might override the right to erasure, as per Article 17(3).

Evidence

- {'policy_chunk_id': 'c2 2000-3200', 'snippet': 'If you object to any changes, you may close your account. You acknowledge that your continued use of our Services after we publish or send a notice about our changes to this Privacy Policy means that the collection, use a'}
- {'policy_chunk_id': 'c3 3000-4200', 'snippet': 'changes, you may close your account. You acknowledge that your continued use of our Services after we publish or send a notice about our changes to this Privacy Policy means that the collection, use and sharing of your personal data is subject to the updated Privacy Policy, as of its effective date. You provide data to create an account with us. To create an account you need to provide data including your name, email address and/or mobile number, and a password.'}

Notes

The provided policy text mentions the ability for users to 'close your account' which could imply data deletion, but it does not explicitly address the 'right to erasure' as a distinct process, nor does it outline grounds for refusal or retention exceptions.

```
{
  "article_number": 17,
  "article_title": "Right to erasure",
  "chapter": "Ch.3 - Rights of data subjects",
  "priority": "p2",
  "status": "partial",
  "gaps": [
    "The policy does not explicitly describe the process for handling data erasure requests, including specific timelines or acknowledgment procedures.",
    "The policy does not detail any specific grounds for refusal to comply with an erasure request as permitted by Article 17(3) of the GDPR.",
    "There is no mention of exceptions or specific conditions under which data retention might override the right to erasure, as per Article 17(3)."
  ],
  "evidence": [
    {
      "policy_chunk_id": "c2 2000-3200",
      "snippet": "If you object to any changes, you may close your account. You acknowledge
```

that your continued use of our Services after we publish or send a notice about our changes to this Privacy Policy means that the collection, use a"

```

    },
    {
      "policy_chunk_id": "c3 3000-4200",
      "snippet": "changes, you may close your account. You acknowledge that your continued use
of our Services after we publish or send a notice about our changes to this Privacy Policy
means that the collection, use and sharing of your personal data is subject to the updated
Privacy Policy, as of its effective date. You provide data to create an account with us. To
create an account you need to provide data including your name, email address and/or mobile
number, and a password."
    }
  ],
  "risk": "medium",
  "needs_human_review": false,
  "notes": "The provided policy text mentions the ability for users to 'close your account'
which could imply data deletion, but it does not explicitly address the 'right to erasure' as a
distinct process, nor does it outline grounds for refusal or retention exceptions.",
  "article_material_used": "text"
}

```

Art. 18 — Right to restriction

Priority: p2 **Chapter:** Ch.3 – Rights of data subjects

Severity: critical **Status:** fail

Score: 0/100

Risk: high

Gaps:

- The provided policy chunks do not explicitly describe the right to restrict processing or outline procedures for data subjects to request a freeze on their data under the conditions specified in Article 18 (accuracy contested, unlawful processing, data no longer needed but required for legal claims, or objection pending verification).

Evidence:

- None of the provided policy chunks (c14, c15, c16, c17, c18) mention the right to restriction of processing as defined in GDPR Article 18. These chunks focus on data usage for service provision, content recommendations, job suggestions, advertising, and communication preferences.

Notes:

The policy content does not address the data subject's right to restrict processing as outlined in Article 18 of the GDPR. There is no mention of how a data subject can request this restriction based on the conditions provided in the article, nor how the controller should handle such requests. This is a significant gap in compliance for this specific right.

```

{
  "article_number": 18,
  "article_title": "Right to restriction",
  "chapter": "Ch.3 – Rights of data subjects",
  "priority": "p2",
  "status": "fail",
  "gaps": [
    "The provided policy chunks do not explicitly describe the right to restrict processing or
outline procedures for data subjects to request a freeze on their data under the conditions
specified in Article 18 (accuracy contested, unlawful processing, data no longer needed but
required for legal claims, or objection pending verification).",
  ],
  "evidence": [
    "None of the provided policy chunks (c14, c15, c16, c17, c18) mention the right to
restriction of processing as defined in GDPR Article 18. These chunks focus on data usage for
service provision, content recommendations, job suggestions, advertising, and communication
preferences."
  ],
  "risk": "high",
  "needs_human_review": false,
  "notes": "The policy content does not address the data subject's right to restrict processing
as outlined in Article 18 of the GDPR. There is no mention of how a data subject can request
this restriction based on the conditions provided in the article, nor how the controller should
handle such requests. This is a significant gap in compliance for this specific right.",
  "article_material_used": "text"
}

```

Art. 19 — Notification on rectification/erasure

Priority: p3 **Chapter:** Ch.3 – Rights of data subjects

Severity: critical Status: missing
Score: 0/100
Notes

The policy text does not mention downstream notification to recipients upon rectification or erasure of personal data, which is the core of Article 19.

```
{
  "article_number": 19,
  "article_title": "Notification on rectification/erasure",
  "chapter": "Ch.3 - Rights of data subjects",
  "priority": "p3",
  "policy_present": false,
  "implementation_unverified": false,
  "needs_human_review": true,
  "evidence": [],
  "notes": "The policy text does not mention downstream notification to recipients upon
rectification or erasure of personal data, which is the core of Article 19.",
  "status": null,
  "gaps": [],
  "risk": null
}
```

Art. 20 — Right to data portability

Priority: p2 Chapter: Ch.3 – Rights of data subjects
Severity: critical Status: fail
Score: 0/100
Risk: high
Gaps

- The policy does not explicitly mention the right to receive personal data in a structured, commonly used, and machine-readable format.
- The policy does not explicitly mention the right to transmit data to another controller without hindrance.
- The policy does not explicitly mention the right to have personal data transmitted directly from one controller to another, where technically feasible.

Evidence

- No mention of "structured, commonly used and machine-readable format".
- No mention of "transmit those data to another controller without hindrance".
- No mention of "transmitted directly from one controller to another, where technically feasible".

Notes

The policy does not address the specific requirements of Article 20 regarding data portability, including the format of the data and the ability to transfer it to another controller. While the policy mentions data collection and use, it lacks details on how users can exercise their right to data portability as defined by GDPR Article 20.

```
{
  "article_number": 20,
  "article_title": "Right to data portability",
  "chapter": "Ch.3 - Rights of data subjects",
  "priority": "p2",
  "status": "fail",
  "gaps": [
    "The policy does not explicitly mention the right to receive personal data in a structured,
commonly used, and machine-readable format.",
    "The policy does not explicitly mention the right to transmit data to another controller
without hindrance.",
    "The policy does not explicitly mention the right to have personal data transmitted
directly from one controller to another, where technically feasible."
  ],
  "evidence": [
    "No mention of \"structured, commonly used and machine-readable format\".",
    "No mention of \"transmit those data to another controller without hindrance\".",
    "No mention of \"transmitted directly from one controller to another, where technically
feasible\"."
  ],
  "risk": "high",
  "needs_human_review": false,
  "notes": "The policy does not address the specific requirements of Article 20 regarding data
portability, including the format of the data and the ability to transfer it to another
controller. While the policy mentions data collection and use, it lacks details on how users
can exercise their right to data portability as defined by GDPR Article 20.",
  "article_material_used": "text"
}
```

Art. 21 — Right to object

Priority: p2 **Chapter:** Ch.3 – Rights of data subjects

Severity: critical **Status:** fail

Score: 0/100

Risk: high

Gaps

- The policy does not explicitly state how data subjects can object to direct marketing or profiling, nor does it confirm if this right is presented clearly and separately from other information at the time of first communication.
- There is no mention of automated means for exercising the right to object, as required by Article 21(5) for information society services.

Evidence

- c0: The policy mentions that LinkedIn 'offer[s] our users choices about the data we collect, use and share as described in this Privacy Policy, Cookie Policy, Settings and our Help Center.'
- c2: 'If you object to any changes, you may close your account.'

Notes

The policy mentions offering choices and the ability to close an account if one objects to policy changes, but it does not detail the explicit right to object to processing for direct marketing or profiling as required by Article 21. It also fails to mention automated means for exercising this right.

```
{
  "article_number": 21,
  "article_title": "Right to object",
  "chapter": "Ch.3 – Rights of data subjects",
  "priority": "p2",
  "status": "fail",
  "gaps": [
    "The policy does not explicitly state how data subjects can object to direct marketing or profiling, nor does it confirm if this right is presented clearly and separately from other information at the time of first communication.",
    "There is no mention of automated means for exercising the right to object, as required by Article 21(5) for information society services."
  ],
  "evidence": [
    "c0: The policy mentions that LinkedIn 'offer[s] our users choices about the data we collect, use and share as described in this Privacy Policy, Cookie Policy, Settings and our Help Center.'",
    "c2: 'If you object to any changes, you may close your account.'",
  ],
  "risk": "high",
  "needs_human_review": false,
  "notes": "The policy mentions offering choices and the ability to close an account if one objects to policy changes, but it does not detail the explicit right to object to processing for direct marketing or profiling as required by Article 21. It also fails to mention automated means for exercising this right.",
  "article_material_used": "text"
}
```

Art. 22 — Automated decision-making

Priority: p2 **Chapter:** Ch.3 – Rights of data subjects

Severity: critical **Status:** fail

Score: 0/100

Risk: high

Gaps

- The policy does not explicitly state whether decisions are based solely on automated processing, including profiling, which produce legal effects or similarly significant effects on the data subject.
- The policy does not mention the right not to be subject to automated decision-making.
- The policy does not mention the right to human intervention, to express one's point of view, or to contest a decision made solely on automated processing.
- The policy does not address exceptions where automated decision-making is necessary for contract performance, authorized by law with safeguards, or based on explicit consent.
- The policy does not specify measures for automated decisions involving special categories of personal data.

Evidence

- c0 0-1200: This policy chunk discusses LinkedIn's mission to connect professionals and its commitment to transparency regarding data collection, use, and sharing. It mentions user choices about data but doesn't specify automated decision-making rights.
- c1 1000-2200: This chunk defines the scope of services and designates controllers based on location. It refers to other policies but doesn't detail automated decision-making provisions.
- c2 2000-3200: This chunk explains how policy changes are communicated and how users can close their accounts. It doesn't address Article 22 rights.
- c3 3000-4200: This chunk describes data provided for account creation and profile completion, including choices about sensitive information. It does not mention automated decision-making rights.
- c4 4000-5200: This chunk discusses data provided when using services, such as forms, surveys, and resumes, and data obtained from syncing contacts or calendars. It doesn't refer to Article 22 rights.

Notes

The provided policy chunks do not contain information related to Article 22 of the GDPR concerning automated decision-making, including profiling. There is no mention of the data subject's right not to be subject to such decisions, nor any details about exceptions, human intervention, or the right to contest automated decisions. Therefore, compliance with Article 22 cannot be verified.

```
{
  "article_number": 22,
  "article_title": "Automated decision-making",
  "chapter": "Ch.3 - Rights of data subjects",
  "priority": "p2",
  "status": "fail",
  "gaps": [
    "The policy does not explicitly state whether decisions are based solely on automated processing, including profiling, which produce legal effects or similarly significant effects on the data subject.",
    "The policy does not mention the right not to be subject to automated decision-making.",
    "The policy does not mention the right to human intervention, to express one's point of view, or to contest a decision made solely on automated processing.",
    "The policy does not address exceptions where automated decision-making is necessary for contract performance, authorized by law with safeguards, or based on explicit consent.",
    "The policy does not specify measures for automated decisions involving special categories of personal data."
  ],
  "evidence": [
    "c0 0-1200: This policy chunk discusses LinkedIn's mission to connect professionals and its commitment to transparency regarding data collection, use, and sharing. It mentions user choices about data but doesn't specify automated decision-making rights.",
    "c1 1000-2200: This chunk defines the scope of services and designates controllers based on location. It refers to other policies but doesn't detail automated decision-making provisions.",
    "c2 2000-3200: This chunk explains how policy changes are communicated and how users can close their accounts. It doesn't address Article 22 rights.",
    "c3 3000-4200: This chunk describes data provided for account creation and profile completion, including choices about sensitive information. It does not mention automated decision-making rights.",
    "c4 4000-5200: This chunk discusses data provided when using services, such as forms, surveys, and resumes, and data obtained from syncing contacts or calendars. It doesn't refer to Article 22 rights."
  ],
  "risk": "high",
  "needs_human_review": false,
  "notes": "The provided policy chunks do not contain information related to Article 22 of the GDPR concerning automated decision-making, including profiling. There is no mention of the data subject's right not to be subject to such decisions, nor any details about exceptions, human intervention, or the right to contest automated decisions. Therefore, compliance with Article 22 cannot be verified.",
  "article_material_used": "text"
}
```

Art. 24 — Responsibility of the controller

Priority: p2 **Chapter:** Ch.4 – Controller & processor

Severity: warning **Status:** partial

Score: 36/100

Risk: medium

Gaps

- The provided policy chunks do not explicitly mention the implementation of specific technical and organisational measures to ensure and demonstrate compliance with GDPR (Article 24(1)).
- There is no clear indication within the policy chunks that data protection policies are implemented (Article 24(2)).
- The policy chunks do not reference approved codes of conduct or certification mechanisms as a means to demonstrate compliance (Article 24(3)).

Evidence

- The policy chunks discuss the use of member data for various purposes such as suggesting content, providing network notices, recommending jobs, and enabling communication and collaboration.
- It is mentioned that automated systems are used to provide content and recommendations to make services more relevant.
- The policies describe how member data is used to target and measure the performance of ads, both on and off the services, directly or through partners.
- The policy mentions adherence to self-regulatory principles for interest-based advertising and participation in industry opt-outs.

Notes

The policy chunks provide some insight into how data is processed and how certain services operate, which indirectly relates to controller responsibility. However, they lack explicit details on the implementation of technical and organisational measures, data protection policies, and the use of codes of conduct or certifications as required by Article 24. The current information is insufficient to fully assess the controller's accountability for demonstrating GDPR compliance.

```
{
  "article_number": 24,
  "article_title": "Responsibility of the controller",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p2",
  "status": "partial",
  "gaps": [
    "The provided policy chunks do not explicitly mention the implementation of specific technical and organisational measures to ensure and demonstrate compliance with GDPR (Article 24(1)).",
    "There is no clear indication within the policy chunks that data protection policies are implemented (Article 24(2)).",
    "The policy chunks do not reference approved codes of conduct or certification mechanisms as a means to demonstrate compliance (Article 24(3))."
  ],
  "evidence": [
    "The policy chunks discuss the use of member data for various purposes such as suggesting content, providing network notices, recommending jobs, and enabling communication and collaboration.",
    "It is mentioned that automated systems are used to provide content and recommendations to make services more relevant.",
    "The policies describe how member data is used to target and measure the performance of ads, both on and off the services, directly or through partners.",
    "The policy mentions adherence to self-regulatory principles for interest-based advertising and participation in industry opt-outs."
  ],
  "risk": "medium",
  "needs_human_review": false,
  "notes": "The policy chunks provide some insight into how data is processed and how certain services operate, which indirectly relates to controller responsibility. However, they lack explicit details on the implementation of technical and organisational measures, data protection policies, and the use of codes of conduct or certifications as required by Article 24. The current information is insufficient to fully assess the controller's accountability for demonstrating GDPR compliance.",
  "article_material_used": "text"
}
```

Art. 25 — Privacy by design and default

Priority: p3 Chapter: Ch.4 – Controller & processor

Severity: critical Status: missing

Score: 0/100

Notes

The policy does not mention "privacy by design" or "privacy by default" specifically, nor does it address the underlying concepts of integrating data protection into the development of systems and services from the

outset.

```
{
  "article_number": 25,
  "article_title": "Privacy by design and default",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p3",
  "policy_present": false,
  "implementation_unverified": false,
  "needs_human_review": true,
  "evidence": [],
  "notes": "The policy does not mention \"privacy by design\" or \"privacy by default\" specifically, nor does it address the underlying concepts of integrating data protection into the development of systems and services from the outset.",
  "status": null,
  "gaps": [],
  "risk": null
}
```

Art. 26 — Joint controllers

Priority: p3 **Chapter:** Ch.4 – Controller & processor

Severity: warning **Status:** present (unverified)

Score: 70/100

Notes

The definition of 'controller' explicitly mentions 'jointly with others' determining the purposes and means of processing, which directly addresses the concept of joint controllership.

```
{
  "article_number": 26,
  "article_title": "Joint controllers",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p3",
  "policy_present": true,
  "implementation_unverified": true,
  "needs_human_review": true,
  "evidence": "clause (7) 'controller' means the natural or legal person, public authority, agency or other body which, alone or jointly with others, determines the purposes and means of the processing of personal data; where the purposes and means of such processing are determined by Union or Member State law, the controller or the specific criteria for its nomination may be provided for by Union or Member State law;",
  "notes": "The definition of 'controller' explicitly mentions 'jointly with others' determining the purposes and means of processing, which directly addresses the concept of joint controllership.",
  "status": null,
  "gaps": [],
  "risk": null
}
```

Art. 27 — Representatives (non-EU)

Priority: p3 **Chapter:** Ch.4 – Controller & processor

Severity: critical **Status:** missing

Score: 0/100

Notes

The provided text contains definitions from GDPR Article 4 but does not address the requirements for non-EU representatives as outlined in Article 27.

```
{
  "article_number": 27,
  "article_title": "Representatives (non-EU)",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p3",
  "policy_present": false,
  "implementation_unverified": false,
  "needs_human_review": true,
  "evidence": [],
  "notes": "The provided text contains definitions from GDPR Article 4 but does not address the requirements for non-EU representatives as outlined in Article 27.",
  "status": null,
  "gaps": [],
  "risk": null
}
```


Art. 28 — Processor / DPA

Priority: p2 Chapter: Ch.4 – Controller & processor

Severity: critical Status: fail

Score: 0/100

Risk: critical

Gaps

- The provided policy does not contain explicit clauses regarding the DPA, specifically addressing sub-processor lists, audit rights, deletion/return obligations, or processor's adherence to written instructions.
- Article 28(2) requires processors to obtain prior written authorization for engaging sub-processors and to inform the controller of any intended changes. The policy lacks this.
- Article 28(3)(a) mandates that processors act only on documented instructions from the controller. The policy does not specify this.
- Article 28(3)(h) requires processors to make information available to demonstrate compliance and allow for audits. The policy does not address this.
- Article 28(3)(g) stipulates that processors must delete or return personal data after service provision. The policy is silent on this.

Evidence

- The provided policy chunks (c0-c4) are from LinkedIn's Privacy Policy and focus on data collection, usage, and user choices regarding their profiles and data sharing. They do not contain clauses that would typically be found in a Data Processing Agreement (DPA) or outline the responsibilities of a processor as detailed in GDPR Article 28.
- The reference article material for GDPR Article 28 is provided, outlining the requirements for DPAs, but no corresponding clauses are found within the policy chunks.

Notes

The policy text provided does not contain the necessary DPA clauses as required by Article 28 of the GDPR. Specifically, there is no mention of sub-processor management, audit rights, data deletion/return obligations, or adherence to documented instructions from the controller. This absence represents a critical compliance gap.

```
{
  "article_number": 28,
  "article_title": "Processor / DPA",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p2",
  "status": "fail",
  "gaps": [
    "The provided policy does not contain explicit clauses regarding the DPA, specifically addressing sub-processor lists, audit rights, deletion/return obligations, or processor's adherence to written instructions.",
    "Article 28(2) requires processors to obtain prior written authorization for engaging sub-processors and to inform the controller of any intended changes. The policy lacks this.",
    "Article 28(3)(a) mandates that processors act only on documented instructions from the controller. The policy does not specify this.",
    "Article 28(3)(h) requires processors to make information available to demonstrate compliance and allow for audits. The policy does not address this.",
    "Article 28(3)(g) stipulates that processors must delete or return personal data after service provision. The policy is silent on this."
  ],
  "evidence": [
    "The provided policy chunks (c0-c4) are from LinkedIn's Privacy Policy and focus on data collection, usage, and user choices regarding their profiles and data sharing. They do not contain clauses that would typically be found in a Data Processing Agreement (DPA) or outline the responsibilities of a processor as detailed in GDPR Article 28.",
    "The reference article material for GDPR Article 28 is provided, outlining the requirements for DPAs, but no corresponding clauses are found within the policy chunks."
  ],
  "risk": "critical",
  "needs_human_review": false,
  "notes": "The policy text provided does not contain the necessary DPA clauses as required by Article 28 of the GDPR. Specifically, there is no mention of sub-processor management, audit rights, data deletion/return obligations, or adherence to documented instructions from the controller. This absence represents a critical compliance gap.",
  "article_material_used": "text"
}
```

Art. 29 — Processing under authority

Priority: p2 Chapter: Ch.4 – Controller & processor

Severity: critical Status: fail

Score: 0/100

Risk: high

Gaps

- The policy does not explicitly document the requirement that processors and persons acting under their authority must only process personal data on the controller's instructions, unless otherwise required by law. This is a direct contravention of Article 29.

Evidence

- Article 29 of GDPR states that processors and persons acting under the authority of the controller or processor shall not process personal data except on instructions from the controller, unless required by Union or Member State law.

Notes

The policy is missing explicit requirements for processors and individuals acting under their authority to only process personal data based on controller instructions. This leaves a significant gap in ensuring data is processed lawfully and as intended by the controller, potentially leading to unauthorized processing.

```
{
  "article_number": 29,
  "article_title": "Processing under authority",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p2",
  "status": "fail",
  "gaps": [
    "The policy does not explicitly document the requirement that processors and persons acting under their authority must only process personal data on the controller's instructions, unless otherwise required by law. This is a direct contravention of Article 29."
  ],
  "evidence": [
    "Article 29 of GDPR states that processors and persons acting under the authority of the controller or processor shall not process personal data except on instructions from the controller, unless required by Union or Member State law."
  ],
  "risk": "high",
  "needs_human_review": false,
  "notes": "The policy is missing explicit requirements for processors and individuals acting under their authority to only process personal data based on controller instructions. This leaves a significant gap in ensuring data is processed lawfully and as intended by the controller, potentially leading to unauthorized processing.",
  "article_material_used": "text"
}
```

Art. 30 — Records of processing (ROPA)

Priority: p2 Chapter: Ch.4 – Controller & processor

Severity: critical Status: fail

Score: 0/100

Risk: high

Gaps

- The provided policy text does not contain a specific record of processing activities (ROPA) as required by Article 30. While it mentions data collection, usage, and sharing, it lacks the detailed information mandated for a ROPA, such as specific categories of data subjects, recipients, retention periods, and security measures.
- The policy does not explicitly state the purposes of processing for all data collected, beyond a general mission statement. Article 30(1)(b) requires specific purposes for processing.
- The policy does not detail the categories of recipients to whom personal data has been or will be disclosed, nor does it include information on transfers to third countries or international organizations with suitable safeguards, as required by Article 30(1)(d) and (e).
- Information regarding the envisaged time limits for erasure of different categories of data is not present, as required by Article 30(1)(f).
- While Article 30(1)(g) requests a general description of technical and organisational security measures, the provided text does not include this specific detail. Although LinkedIn implies security through its mission and data handling, a explicit description for ROPA is missing.

Evidence

- The policy text discusses the collection of personal data for account creation, profile completion, and through syncing of address books/calendars. It also mentions data usage for professional networking, opportunities, and learning.
- LinkedIn states its mission to "connect the world's professionals to allow them to be more productive and successful" and commits to being "transparent about the data we collect about you, how it is used and with whom it is shared."
- The policy identifies LinkedIn Ireland Unlimited Company as the controller for data subjects in "Designated Countries" and LinkedIn Corporation as the controller for those outside these countries.

Notes

The provided policy text does not constitute a Record of Processing Activities (ROPA) as required by Article 30 of the GDPR. It fails to include the mandatory details such as specific purposes, categories of data subjects and data, recipients, retention periods, and security measures in a structured format suitable for a ROPA. Although LinkedIn is a large organization likely to have such records internally, the public-facing policy does not demonstrate compliance with this specific article.

```
{
  "article_number": 30,
  "article_title": "Records of processing (ROPA)",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p2",
  "status": "fail",
  "gaps": [
    "The provided policy text does not contain a specific record of processing activities (ROPA) as required by Article 30. While it mentions data collection, usage, and sharing, it lacks the detailed information mandated for a ROPA, such as specific categories of data subjects, recipients, retention periods, and security measures.",
    "The policy does not explicitly state the purposes of processing for all data collected, beyond a general mission statement. Article 30(1)(b) requires specific purposes for processing.",
    "The policy does not detail the categories of recipients to whom personal data has been or will be disclosed, nor does it include information on transfers to third countries or international organizations with suitable safeguards, as required by Article 30(1)(d) and (e).",
    "Information regarding the envisaged time limits for erasure of different categories of data is not present, as required by Article 30(1)(f).",
    "While Article 30(1)(g) requests a general description of technical and organisational security measures, the provided text does not include this specific detail. Although LinkedIn implies security through its mission and data handling, an explicit description for ROPA is missing."
  ],
  "evidence": [
    "The policy text discusses the collection of personal data for account creation, profile completion, and through syncing of address books/calendars. It also mentions data usage for professional networking, opportunities, and learning.",
    "LinkedIn states its mission to \"connect the world's professionals to allow them to be more productive and successful\" and commits to being \"transparent about the data we collect about you, how it is used and with whom it is shared.\"",
    "The policy identifies LinkedIn Ireland Unlimited Company as the controller for data subjects in \"Designated Countries\" and LinkedIn Corporation as the controller for those outside these countries."
  ],
  "risk": "high",
  "needs_human_review": false,
  "notes": "The provided policy text does not constitute a Record of Processing Activities (ROPA) as required by Article 30 of the GDPR. It fails to include the mandatory details such as specific purposes, categories of data subjects and data, recipients, retention periods, and security measures in a structured format suitable for a ROPA. Although LinkedIn is a large organization likely to have such records internally, the public-facing policy does not demonstrate compliance with this specific article.",
  "article_material_used": "text"
}
```

Art. 32 — Security of processing

Priority: p3 Chapter: Ch.4 – Controller & processor

Severity: critical Status: missing

Score: 0/100

Notes

The policy text provided does not contain any information related to encryption, access controls, incident response, or testing, which are the key elements to look for in relation to Article 32 of the GDPR. The provided text focuses on data collection, use, and sharing.

```
{
```

```

"article_number": 32,
"article_title": "Security of processing",
"chapter": "Ch.4 – Controller & processor",
"priority": "p3",
"policy_present": false,
"implementation_unverified": false,
"needs_human_review": true,
"evidence": [],
"notes": "The policy text provided does not contain any information related to encryption,
access controls, incident response, or testing, which are the key elements to look for in
relation to Article 32 of the GDPR. The provided text focuses on data collection, use, and
sharing.",
"status": null,
"gaps": [],
"risk": null
}

```

Art. 33 — Breach notification to SA

Priority: p3 **Chapter:** Ch.4 – Controller & processor
Severity: critical **Status:** missing
Score: 0/100
Notes:

The provided text does not contain any information about breach notification policies or procedures to a supervisory authority, nor does it mention any specific timelines like the 72-hour requirement. The focus is on general privacy policy statements regarding data collection, usage, and user choices.

```

{
  "article_number": 33,
  "article_title": "Breach notification to SA",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p3",
  "policy_present": false,
  "implementation_unverified": false,
  "needs_human_review": true,
  "evidence": [],
  "notes": "The provided text does not contain any information about breach notification
policies or procedures to a supervisory authority, nor does it mention any specific timelines
like the 72-hour requirement. The focus is on general privacy policy statements regarding data
collection, usage, and user choices.",
  "status": null,
  "gaps": [],
  "risk": null
}

```

Art. 34 — Breach communication to data subject

Priority: p3 **Chapter:** Ch.4 – Controller & processor
Severity: critical **Status:** missing
Score: 0/100
Notes:

The provided text is a privacy policy that details data collection, usage, and sharing practices. However, it does not contain any information or procedures related to handling data breaches or communicating such breaches to data subjects as required by GDPR Article 34. The agent action of 'auto-check high-risk breach procedure' is not addressed.

```

{
  "article_number": 34,
  "article_title": "Breach communication to data subject",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p3",
  "policy_present": false,
  "implementation_unverified": false,
  "needs_human_review": true,
  "evidence": [],
  "notes": "The provided text is a privacy policy that details data collection, usage, and
sharing practices. However, it does not contain any information or procedures related to
handling data breaches or communicating such breaches to data subjects as required by GDPR
Article 34. The agent action of 'auto-check high-risk breach procedure' is not addressed.",
  "status": null,
  "gaps": [],
  "risk": null
}

```

Art. 35 — DPIA

Priority: p3 Chapter: Ch.4 – Controller & processor

Severity: critical Status: missing

Score: 0/100

Notes

The provided text does not contain any explicit mention or discussion of Data Protection Impact Assessments (DPIAs) or any related policy or template for conducting them. Article 35 of the GDPR mandates DPIAs for high-risk processing activities, and this policy text does not address this requirement.

```
{
  "article_number": 35,
  "article_title": "DPIA",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p3",
  "policy_present": false,
  "implementation_unverified": false,
  "needs_human_review": true,
  "evidence": [],
  "notes": "The provided text does not contain any explicit mention or discussion of Data Protection Impact Assessments (DPIAs) or any related policy or template for conducting them. Article 35 of the GDPR mandates DPIAs for high-risk processing activities, and this policy text does not address this requirement.",
  "status": null,
  "gaps": [],
  "risk": null
}
```

Art. 37 — DPO designation

Priority: p2 Chapter: Ch.4 – Controller & processor

Severity: warning Status: partial

Score: 36/100

Risk: high

Gaps

- The policy does not explicitly state whether the organization processes data on a large scale, requires regular and systematic monitoring of data subjects, or processes special categories of data. Without this information, it is impossible to definitively determine if a DPO is required under Article 37(1)(b) or (c).
- The policy does not provide information on whether the organization is a public authority or body, which would trigger the requirement for a DPO under Article 37(1)(a).
- There is no information provided regarding the publication of DPO contact details or communication of these details to the supervisory authority, as required by Article 37(7).

Evidence

- Article 37(1)(a) states a DPO is required if processing is carried out by a public authority or body.
- Article 37(1)(b) states a DPO is required if core activities involve regular and systematic monitoring of data subjects on a large scale.
- Article 37(1)(c) states a DPO is required if core activities involve processing special categories of data on a large scale.
- Article 37(7) requires the controller or processor to publish the contact details of the data protection officer and communicate them to the supervisory authority.

Notes

The policy does not contain sufficient information to determine the specific requirements for DPO designation under Article 37 of the GDPR. Further details are needed regarding the nature of the processing activities, scale of operations, and whether the organization falls under the definition of a public authority or body. Additionally, there is no information on the publication of DPO contact details.

```
{
  "article_number": 37,
  "article_title": "DPO designation",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p2",
  "status": "partial",
  "gaps": [
    "The policy does not explicitly state whether the organization processes data on a large scale, requires regular and systematic monitoring of data subjects, or processes special
```

```

categories of data. Without this information, it is impossible to definitively determine if a
DPO is required under Article 37(1)(b) or (c).",
  "The policy does not provide information on whether the organization is a public authority
or body, which would trigger the requirement for a DPO under Article 37(1)(a).",
  "There is no information provided regarding the publication of DPO contact details or
communication of these details to the supervisory authority, as required by Article 37(7).",
],
"evidence": [
  "Article 37(1)(a) states a DPO is required if processing is carried out by a public
authority or body.",
  "Article 37(1)(b) states a DPO is required if core activities involve regular and
systematic monitoring of data subjects on a large scale.",
  "Article 37(1)(c) states a DPO is required if core activities involve processing special
categories of data on a large scale.",
  "Article 37(7) requires the controller or processor to publish the contact details of the
data protection officer and communicate them to the supervisory authority."
],
"risk": "high",
"needs_human_review": false,
"notes": "The policy does not contain sufficient information to determine the specific
requirements for DPO designation under Article 37 of the GDPR. Further details are needed
regarding the nature of the processing activities, scale of operations, and whether the
organization falls under the definition of a public authority or body. Additionally, there is
no information on the publication of DPO contact details.",
"article_material_used": "text"
}

```

Art. 38 — DPO position

Priority: p3 **Chapter:** Ch.4 – Controller & processor
Severity: critical **Status:** missing
Score: 0/100
Notes:

The provided text does not contain any information regarding the position of the Data Protection Officer (DPO) or their independence as required by GDPR Article 38. The text focuses on data retention, user data choices, and security measures.

```

{
  "article_number": 38,
  "article_title": "DPO position",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p3",
  "policy_present": false,
  "implementation_unverified": false,
  "needs_human_review": true,
  "evidence": [],
  "notes": "The provided text does not contain any information regarding the position of the
Data Protection Officer (DPO) or their independence as required by GDPR Article 38. The text
focuses on data retention, user data choices, and security measures.",
  "status": null,
  "gaps": [],
  "risk": null
}

```

Art. 39 — DPO tasks

Priority: p2 **Chapter:** Ch.4 – Controller & processor
Severity: critical **Status:** fail
Score: 0/100
Risk: critical
Gaps:

- The policy chunks provided do not contain any information about the tasks and responsibilities of a Data Protection Officer (DPO) as outlined in Article 39 of the GDPR. Specifically, there is no mention of the DPO's role in advising the controller/processor, monitoring compliance, involvement in Data Protection Impact Assessments (DPIAs), or cooperating with supervisory authorities.

Notes:

The provided policy chunks do not offer any information to assess compliance with GDPR Article 39 regarding DPO tasks. Therefore, compliance cannot be verified.

```

{
  "article_number": 39,
  "article_title": "DPO tasks",

```

```

"chapter": "Ch.4 – Controller & processor",
"priority": "p2",
"status": "fail",
"gaps": [
  "The policy chunks provided do not contain any information about the tasks and responsibilities of a Data Protection Officer (DPO) as outlined in Article 39 of the GDPR. Specifically, there is no mention of the DPO's role in advising the controller/processor, monitoring compliance, involvement in Data Protection Impact Assessments (DPIAs), or cooperating with supervisory authorities."
],
"evidence": [],
"risk": "critical",
"needs_human_review": false,
"notes": "The provided policy chunks do not offer any information to assess compliance with GDPR Article 39 regarding DPO tasks. Therefore, compliance cannot be verified.",
"article_material_used": "text"
}

```

Art. 40 — Codes of conduct

Priority: p3 Chapter: Ch.4 – Controller & processor
 Severity: critical Status: missing
 Score: 0/100
 Notes

The provided text contains definitions from GDPR Article 4, not Article 40 on codes of conduct. Therefore, it does not address the topic.

```

{
  "article_number": 40,
  "article_title": "Codes of conduct",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p3",
  "policy_present": false,
  "implementation_unverified": false,
  "needs_human_review": true,
  "evidence": [],
  "notes": "The provided text contains definitions from GDPR Article 4, not Article 40 on codes of conduct. Therefore, it does not address the topic.",
  "status": null,
  "gaps": [],
  "risk": null
}

```

Art. 42 — Certification

Priority: p3 Chapter: Ch.4 – Controller & processor
 Severity: critical Status: missing
 Score: 0/100
 Notes

The provided text only includes definitions from Article 4 of the GDPR and does not contain any information related to Article 42, which covers certification.

```

{
  "article_number": 42,
  "article_title": "Certification",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p3",
  "policy_present": false,
  "implementation_unverified": false,
  "needs_human_review": true,
  "evidence": [],
  "notes": "The provided text only includes definitions from Article 4 of the GDPR and does not contain any information related to Article 42, which covers certification.",
  "status": null,
  "gaps": [],
  "risk": null
}

```

Art. 44 — General principle for transfers

Priority: p2 Chapter: Ch.5 – Transfers to third countries
 Severity: critical Status: fail

Score: 0/100

Risk: high

Gaps

- The policy does not mention compliance with Chapter 5 mechanisms for international transfers of personal data.

Evidence

- Policy chunks c21-c25 discuss data usage, sharing with third parties (e.g., trusted third parties for research, linking accounts with other services), and data archiving, but do not specifically address the requirements for international data transfers as outlined in GDPR Chapter 5.

Notes

Article 44 requires that all international transfers comply with the conditions laid down in Chapter 5 of the GDPR. The provided policy chunks do not contain any information regarding international data transfers or adherence to Chapter 5 mechanisms. This represents a significant gap in compliance.

```
{
  "article_number": 44,
  "article_title": "General principle for transfers",
  "chapter": "Ch.5 - Transfers to third countries",
  "priority": "p2",
  "status": "fail",
  "gaps": [
    "The policy does not mention compliance with Chapter 5 mechanisms for international transfers of personal data."
  ],
  "evidence": [
    "Policy chunks c21-c25 discuss data usage, sharing with third parties (e.g., trusted third parties for research, linking accounts with other services), and data archiving, but do not specifically address the requirements for international data transfers as outlined in GDPR Chapter 5."
  ],
  "risk": "high",
  "needs_human_review": false,
  "notes": "Article 44 requires that all international transfers comply with the conditions laid down in Chapter 5 of the GDPR. The provided policy chunks do not contain any information regarding international data transfers or adherence to Chapter 5 mechanisms. This represents a significant gap in compliance.",
  "article_material_used": "text"
}
```

Art. 45 — Adequacy decision transfers

Priority: p2 Chapter: Ch.5 – Transfers to third countries

Severity: warning Status: partial

Score: 52/100

Risk: medium

Gaps

- The provided text mentions 'Cross-Border Data Transfers' (Section 5.2) but does not specify any third countries or territories that have been deemed adequate by the European Commission under Article 45. Therefore, it is not possible to verify if the company is complying with the adequacy decision requirements.

Evidence

- The policy document section '5.2. Cross-Border Data Transfers' acknowledges the topic of data transfers but lacks specific details regarding adequacy decisions or a list of adequate third countries.
- The provided Article 45 text outlines the conditions and process for adequacy decisions, but no corresponding company policy or practice is described in the supplied policy chunks.

Notes

The policy acknowledges cross-border data transfers exist but does not provide specific information about adherence to Article 45 requirements (adequacy decisions). The absence of detail on which countries are considered adequate, or what measures are in place for transfers to non-adequate countries, presents a compliance gap.

```
{
  "article_number": 45,
  "article_title": "Adequacy decision transfers",
  "chapter": "Ch.5 - Transfers to third countries",
  "priority": "p2",
  "status": "partial",
}
```



```

"gaps": [
  "The provided text mentions 'Cross-Border Data Transfers' (Section 5.2) but does not specify any third countries or territories that have been deemed adequate by the European Commission under Article 45. Therefore, it is not possible to verify if the company is complying with the adequacy decision requirements."
],
"evidence": [
  "The policy document section '5.2. Cross-Border Data Transfers' acknowledges the topic of data transfers but lacks specific details regarding adequacy decisions or a list of adequate third countries.",
  "The provided Article 45 text outlines the conditions and process for adequacy decisions, but no corresponding company policy or practice is described in the supplied policy chunks."
],
"risk": "medium",
"needs_human_review": false,
"notes": "The policy acknowledges cross-border data transfers exist but does not provide specific information about adherence to Article 45 requirements (adequacy decisions). The absence of detail on which countries are considered adequate, or what measures are in place for transfers to non-adequate countries, presents a compliance gap.",
"article_material_used": "text"
}

```

Art. 46 — Transfers with safeguards

Priority: p3 Chapter: Ch.5 – Transfers to third countries
 Severity: critical Status: missing
 Score: 0/100
 Notes

The provided text does not mention SCCs, BCRs, or any other specific safeguards for international data transfers. It focuses on general data collection and use within the policy.

```

{
  "article_number": 46,
  "article_title": "Transfers with safeguards",
  "chapter": "Ch.5 – Transfers to third countries",
  "priority": "p3",
  "policy_present": false,
  "implementation_unverified": false,
  "needs_human_review": true,
  "evidence": [],
  "notes": "The provided text does not mention SCCs, BCRs, or any other specific safeguards for international data transfers. It focuses on general data collection and use within the policy.",
  "status": null,
  "gaps": [],
  "risk": null
}

```

Art. 47 — Binding corporate rules

Priority: p3 Chapter: Ch.5 – Transfers to third countries
 Severity: critical Status: missing
 Score: 0/100
 Notes

The provided text contains definitions from GDPR Article 4 and does not address the specifics of Binding Corporate Rules (BCRs) as outlined in Article 47.

```

{
  "article_number": 47,
  "article_title": "Binding corporate rules",
  "chapter": "Ch.5 – Transfers to third countries",
  "priority": "p3",
  "policy_present": false,
  "implementation_unverified": false,
  "needs_human_review": true,
  "evidence": [],
  "notes": "The provided text contains definitions from GDPR Article 4 and does not address the specifics of Binding Corporate Rules (BCRs) as outlined in Article 47.",
  "status": null,
  "gaps": [],
  "risk": null
}

```

Art. 77 — Right to lodge a complaint

Priority: p2 Chapter: Ch.8 – Remedies, liability & penalties

Severity: critical Status: fail

Score: 0/100

Risk: high

Gaps

- The policy does not inform data subjects of their right to lodge a complaint with a supervisory authority.
- The policy does not inform data subjects of how to lodge a complaint with a supervisory authority.

Evidence

- Policy chunk c28-c33 discusses data subject rights to access, delete, and control their data, but does not mention the right to complain to a supervisory authority.
- No information found in the provided policy chunks detailing the process or procedure for lodging a complaint with a supervisory authority.

Notes

The policy fails to inform data subjects of their right to complain to a supervisory authority and the process for doing so, which is a direct violation of GDPR Article 77. This omission significantly impacts data subject rights and recourse.

```
{
  "article_number": 77,
  "article_title": "Right to lodge a complaint",
  "chapter": "Ch.8 – Remedies, liability & penalties",
  "priority": "p2",
  "status": "fail",
  "gaps": [
    "The policy does not inform data subjects of their right to lodge a complaint with a supervisory authority.",
    "The policy does not inform data subjects of how to lodge a complaint with a supervisory authority."
  ],
  "evidence": [
    "Policy chunk c28-c33 discusses data subject rights to access, delete, and control their data, but does not mention the right to complain to a supervisory authority.",
    "No information found in the provided policy chunks detailing the process or procedure for lodging a complaint with a supervisory authority."
  ],
  "risk": "high",
  "needs_human_review": false,
  "notes": "The policy fails to inform data subjects of their right to complain to a supervisory authority and the process for doing so, which is a direct violation of GDPR Article 77. This omission significantly impacts data subject rights and recourse.",
  "article_material_used": "text"
}
```

Art. 85 — Freedom of expression

Priority: p4 Chapter: Ch.9 – Specific processing situations

Severity: warning Status: triggered (HIL)

Notes

Article 85 of the GDPR provides exemptions for data processing for journalistic purposes or the purpose of academic or artistic expression. The provided policy text is a general privacy policy for a professional networking service and does not appear to directly address or provide for these specific exemptions. Therefore, while the scenario indicates a need for human review for legitimacy, the policy itself does not explicitly trigger this scenario based on its content alone. The trigger is based on the *conditional scenario* provided.

```
{
  "article_number": 85,
  "article_title": "Freedom of expression",
  "chapter": "Ch.9 – Specific processing situations",
  "priority": "p4",
  "p4_triggered": true,
  "needs_human_review": true,
  "evidence": "This article is about data processing for professional networking, job applications, and career development, not journalism, academic research, or artistic expression.",
  "what_to_review": [
    "Confirm the user's claim pertains to journalism, academic, or artistic derogation.",
    "Verify if the specific context of the data processing falls under these derogations.",
    "Assess if LinkedIn has any specific provisions or acknowledges such uses that would require human review under Article 85."
  ],
}
```

```

"notes": "Article 85 of the GDPR provides exemptions for data processing for journalistic purposes or the purpose of academic or artistic expression. The provided policy text is a general privacy policy for a professional networking service and does not appear to directly address or provide for these specific exemptions. Therefore, while the scenario indicates a need for human review for legitimacy, the policy itself does not explicitly trigger this scenario based on its content alone. The trigger is based on the *conditional scenario* provided.",
"status": null,
"gaps": [],
"risk": null
}

```

Art. 88 — Employment context

Priority: p2 Chapter: Ch.9 – Specific processing situations

Severity: critical Status: fail

Score: 0/100

Risk: critical

Gaps

- The policy chunks do not explicitly address the specific requirements of Article 88 regarding the employment context, including recruitment, performance of employment contracts, management, planning, organization of work, equality, diversity, health and safety, protection of property, and termination.
- There is no mention of "specific measures to safeguard the data subject's human dignity, legitimate interests and fundamental rights" as required by Article 88(2).
- The policy chunks do not cover the transparency of processing, transfer of personal data within a group of undertakings, or monitoring systems at the workplace in the employment context, which are specifically highlighted in Article 88(2).

Evidence

- c14
- c15
- c16
- c17
- c18

Notes

The provided policy chunks discuss general data processing for service improvement, recommendations, and advertising, but fail to address the specific nuances and protections required for employee data under Article 88. There is a significant lack of detail concerning recruitment, employment contract management, workplace monitoring, and termination procedures. The policy does not mention suitable and specific measures to safeguard employee dignity, legitimate interests, and fundamental rights, nor does it address transparency, intra-group transfers, or workplace monitoring systems in the employment context.

```

{
  "article_number": 88,
  "article_title": "Employment context",
  "chapter": "Ch.9 – Specific processing situations",
  "priority": "p2",
  "status": "fail",
  "gaps": [
    "The policy chunks do not explicitly address the specific requirements of Article 88 regarding the employment context, including recruitment, performance of employment contracts, management, planning, organization of work, equality, diversity, health and safety, protection of property, and termination.",
    "There is no mention of \"specific measures to safeguard the data subject's human dignity, legitimate interests and fundamental rights\" as required by Article 88(2).",
    "The policy chunks do not cover the transparency of processing, transfer of personal data within a group of undertakings, or monitoring systems at the workplace in the employment context, which are specifically highlighted in Article 88(2).",
  ],
  "evidence": [
    "c14",
    "c15",
    "c16",
    "c17",
    "c18"
  ],
  "risk": "critical",
  "needs_human_review": false,
  "notes": "The provided policy chunks discuss general data processing for service improvement,

```

recommendations, and advertising, but fail to address the specific nuances and protections required for employee data under Article 88. There is a significant lack of detail concerning recruitment, employment contract management, workplace monitoring, and termination procedures. The policy does not mention suitable and specific measures to safeguard employee dignity, legitimate interests, and fundamental rights, nor does it address transparency, intra-group transfers, or workplace monitoring systems in the employment context.",

```
"article_material_used": "text"
}
```

Appendix — human review queue

```
[
  {
    "kind": "p3_verify",
    "article_number": 8,
    "article_title": "Child's consent",
    "policy_present": false,
    "implementation_unverified": false,
    "evidence": [],
    "notes": "The policy text does not contain any information regarding age verification mechanisms or parental consent for child users, which are key aspects of GDPR Article 8."
  },
  {
    "kind": "p3_verify",
    "article_number": 10,
    "article_title": "Criminal convictions data",
    "policy_present": false,
    "implementation_unverified": false,
    "evidence": [],
    "notes": "The provided text contains definitions related to personal data processing under GDPR but does not specifically mention or address criminal convictions data as covered by Article 10."
  },
  {
    "kind": "p3_verify",
    "article_number": 19,
    "article_title": "Notification on rectification/erasure",
    "policy_present": false,
    "implementation_unverified": false,
    "evidence": [],
    "notes": "The policy text does not mention downstream notification to recipients upon rectification or erasure of personal data, which is the core of Article 19."
  },
  {
    "kind": "p3_verify",
    "article_number": 25,
    "article_title": "Privacy by design and default",
    "policy_present": false,
    "implementation_unverified": false,
    "evidence": [],
    "notes": "The policy does not mention \"privacy by design\" or \"privacy by default\" specifically, nor does it address the underlying concepts of integrating data protection into the development of systems and services from the outset."
  },
  {
    "kind": "p3_verify",
    "article_number": 26,
    "article_title": "Joint controllers",
    "policy_present": true,
    "implementation_unverified": true,
    "evidence": "clause (7) 'controller' means the natural or legal person, public authority, agency or other body which, alone or jointly with others, determines the purposes and means of the processing of personal data; where the purposes and means of such processing are determined by Union or Member State law, the controller or the specific criteria for its nomination may be provided for by Union or Member State law;",
    "notes": "The definition of 'controller' explicitly mentions 'jointly with others' determining the purposes and means of processing, which directly addresses the concept of joint controllership."
  },
  {
    "kind": "p3_verify",
    "article_number": 27,
    "article_title": "Representatives (non-EU)",
    "policy_present": false,
    "implementation_unverified": false,
    "evidence": [],
    "notes": "The provided text contains definitions from GDPR Article 4 but does not address the requirements for non-EU representatives as outlined in Article 27."
  },
  {
    "kind": "p3_verify",
    "article_number": 32,
    "article_title": "Security of processing",
    "policy_present": false,
    "implementation_unverified": false,
    "evidence": [],
    "notes": "The policy text provided does not contain any information related to encryption, access controls, incident response, or testing, which are the key elements to look for in relation to Article 32 of the GDPR. The provided text focuses on data collection, use, and sharing."
  }
]
```

```

},
{
  "kind": "p3_verify",
  "article_number": 33,
  "article_title": "Breach notification to SA",
  "policy_present": false,
  "implementation_unverified": false,
  "evidence": [],
  "notes": "The provided text does not contain any information about breach notification policies or procedures to a supervisory authority, nor does it mention any specific timelines like the 72-hour requirement. The focus is on general privacy policy statements regarding data collection, usage, and user choices."
},
{
  "kind": "p3_verify",
  "article_number": 34,
  "article_title": "Breach communication to data subject",
  "policy_present": false,
  "implementation_unverified": false,
  "evidence": [],
  "notes": "The provided text is a privacy policy that details data collection, usage, and sharing practices. However, it does not contain any information or procedures related to handling data breaches or communicating such breaches to data subjects as required by GDPR Article 34. The agent action of 'auto-check high-risk breach procedure' is not addressed."
},
{
  "kind": "p3_verify",
  "article_number": 35,
  "article_title": "DPIA",
  "policy_present": false,
  "implementation_unverified": false,
  "evidence": [],
  "notes": "The provided text does not contain any explicit mention or discussion of Data Protection Impact Assessments (DPIAs) or any related policy or template for conducting them. Article 35 of the GDPR mandates DPIAs for high-risk processing activities, and this policy text does not address this requirement."
},
{
  "kind": "p3_verify",
  "article_number": 38,
  "article_title": "DPO position",
  "policy_present": false,
  "implementation_unverified": false,
  "evidence": [],
  "notes": "The provided text does not contain any information regarding the position of the Data Protection Officer (DPO) or their independence as required by GDPR Article 38. The text focuses on data retention, user data choices, and security measures."
},
{
  "kind": "p3_verify",
  "article_number": 40,
  "article_title": "Codes of conduct",
  "policy_present": false,
  "implementation_unverified": false,
  "evidence": [],
  "notes": "The provided text contains definitions from GDPR Article 4, not Article 40 on codes of conduct. Therefore, it does not address the topic."
},
{
  "kind": "p3_verify",
  "article_number": 42,
  "article_title": "Certification",
  "policy_present": false,
  "implementation_unverified": false,
  "evidence": [],
  "notes": "The provided text only includes definitions from Article 4 of the GDPR and does not contain any information related to Article 42, which covers certification."
},
{
  "kind": "p3_verify",
  "article_number": 46,
  "article_title": "Transfers with safeguards",
  "policy_present": false,
  "implementation_unverified": false,
  "evidence": [],
  "notes": "The provided text does not mention SCCs, BCRs, or any other specific safeguards for international data transfers. It focuses on general data collection and use within the policy."
},
{
  "kind": "p3_verify",
  "article_number": 47,
  "article_title": "Binding corporate rules",

```

```

    "policy_present": false,
    "implementation_unverified": false,
    "evidence": [],
    "notes": "The provided text contains definitions from GDPR Article 4 and does not address
the specifics of Binding Corporate Rules (BCRs) as outlined in Article 47."
  },
  {
    "kind": "p4_conditional",
    "article_number": 85,
    "article_title": "Freedom of expression",
    "what_to_review": [
      "Confirm the user's claim pertains to journalism, academic, or artistic derogation.",
      "Verify if the specific context of the data processing falls under these derogations.",
      "Assess if LinkedIn has any specific provisions or acknowledges such uses that would
require human review under Article 85."
    ],
    "evidence": "This article is about data processing for professional networking, job
applications, and career development, not journalism, academic research, or artistic expression.
",
    "notes": "Article 85 of the GDPR provides exemptions for data processing for journalistic
purposes or the purpose of academic or artistic expression. The provided policy text is a
general privacy policy for a professional networking service and does not appear to directly
address or provide for these specific exemptions. Therefore, while the scenario indicates a
need for human review for legitimacy, the policy itself does not explicitly trigger this
scenario based on its content alone. The trigger is based on the *conditional scenario*
provided."
  }
]

```